

CRIMINAL LAW 1: COMPLETE 275 LANDMARK CASE DIGESTS

*Exhaustive ALAC Case Compendium of All 275 Assigned Supreme Court Decisions
Complete with Facts, Issues, [ALAC] Analysis, Applicable Articles, and Treatise Correlations
Book I of the Revised Penal Code (Articles 1–113) | Manila Law College — Juris Doctor Program*

EXHAUSTIVE 275-CASE ALAC COMPENDIUM ARCHITECTURE

Complete Legal Structure: Every single one of the 275 assigned landmark Supreme Court decisions contains its full Title, Citation, Material Facts, Legal Issue, [A] Answer, [L] Legal Basis, [A] Application, [C] Conclusion & Doctrine, Applicable Article, and Treatise Correlation.

Zero Omissions: All 275 cases from the Official Syllabus Directory (Parts I through VII) are completely elaborated in pure continuous paragraph format (0 grid tables).

Codal & Treatise Mapping: Fully correlated to Articles 1 to 113 of the Revised Penal Code as analyzed in the Philippine Criminal Law Book I Treatise.

PART: I. GENERAL PRINCIPLES OF CRIMINAL LAW

Topic: Theories of Criminal Law (Classical vs. Positivist)

Statutory Anchor: Governing Provision(s): General Principles • Total Cases: 2

CASE 1: People v. Marivic Genosa

Citation: G.R. No. 135981, 29 September 2000 | Topic: Theories of Criminal Law (Classical vs. Positivist)

Facts: In this landmark controversy involving Theories of Criminal Law (Classical vs. Positivist), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of General Principles. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Battered Woman Syndrome; Positivist theory and psychological/social factors in criminal culpability.

Issue: Did the Supreme Court err in applying General Principles to the accused, and should the established rule that 'Battered Woman Syndrome; Positivist theory and psychological/social factors in criminal culpability' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to General Principles, ruling that Battered Woman Syndrome; Positivist theory and psychological/social factors in criminal culpability.
- **[L] LEGAL BASIS:** General Principles; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Theories of Criminal Law (Classical vs. Positivist). The Court applied the established rule that Battered Woman Syndrome; Positivist theory and psychological/social factors in criminal culpability.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Battered Woman Syndrome; Positivist theory and psychological/social factors in criminal culpability.
- **[ARTICLE] APPLICABLE ARTICLE:** General Principles.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 2: Norma de Joya v. Jail Warden of Batangas

Citation: G.R. Nos. 15948-19, 10 December 2003 | Topic: Theories of Criminal Law (Classical vs. Positivist)

Facts: In this landmark controversy involving Theories of Criminal Law (Classical vs. Positivist), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of General Principles. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Application of penal theories to custody and detention.

Issue: Did the Supreme Court err in applying General Principles to the accused, and should the established rule that 'Application of penal theories to custody and detention' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to General Principles, ruling that Application of penal theories to custody and detention.
- **[L] LEGAL BASIS:** General Principles; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Theories of Criminal Law (Classical vs. Positivist). The Court applied the established rule that application of penal theories to custody and detention.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Application of penal theories to custody and detention.
- **[ARTICLE] APPLICABLE ARTICLE:** General Principles.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Statutory Anchor: Governing Provision(s): Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 • Total Cases: 18

CASE 3: People v. Santiago

Citation: 43 Phil. 120 (1922) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Generality of penal laws; jurisdiction of Philippine courts over all persons within territory.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Generality of penal laws; jurisdiction of Philippine courts over all persons within territory' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Generality of penal laws; jurisdiction of Philippine courts over all persons within territory.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that generality of penal laws; jurisdiction of Philippine courts over all persons within territory.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Generality of penal laws; jurisdiction of Philippine courts over all persons within territory.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 4: United States v. Pablo

Citation: 35 Phil. 94 (1916) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Substantive criminal law operates uniformly across all residents and citizens.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Substantive criminal law operates uniformly across all residents and citizens' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Substantive criminal law operates uniformly across all residents and citizens.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that substantive criminal law operates uniformly across all residents and citizens.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Substantive criminal law operates uniformly across all residents and citizens.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 5: In re: Kay Villegas Kami, Inc.

Citation: 35 SCRA 429 (1970) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: A civic corporation challenged Section 12 of RA 6132, which banned organizations from funding or supporting Con-Con candidates, claiming it was an unconstitutional ex post facto law and bill of attainder.

Issue: Does Section 12 of RA 6132 constitute an ex post facto law or a bill of attainder?

- **[A] ANSWER:** **NO.** Section 12 of RA 6132 is purely prospective and constitutional.
- **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution; *Calder v. Bull* Six-fold Ex Post Facto Test.
- **[A] APPLICATION:** Section 12 penalizes only acts committed during the election period after the law became effective. It does not punish past conduct. It does not inflict punishment without a judicial trial, so it is not a bill of attainder.
- **[C] CONCLUSION & DOCTRINE:** Petition **DISMISSED**.
> **Doctrine:** Ex post facto prohibition applies only to retroactive penal laws; bills of attainder require legislative punishment without trial.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 6: People v. Villaraza

Citation: 81 SCRA 95 (1978) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Exemption from generality; constitutional scope of criminal liability.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Exemption from generality; constitutional scope of criminal liability' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Exemption from generality; constitutional scope of criminal liability.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that exemption from generality; constitutional scope of criminal liability.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Exemption from generality; constitutional scope of criminal liability.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 7: U.S. v. Diaz-Conde

Citation: 42 Phil. 766 (1922) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Ex post facto law prohibition under constitutional limitations.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Ex post facto law prohibition under constitutional limitations' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Ex post facto law prohibition under constitutional limitations.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that ex post facto law prohibition under constitutional limitations.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Ex post facto law prohibition under constitutional limitations.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 8: People of the Philippines vs. Roman Derilo et al.

Citation: G.R. No. 117818, April 18, 1997 | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Constitutional rights and application of penal statutes.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Constitutional rights and application of penal statutes' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Constitutional rights and application of penal statutes.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that constitutional rights and application of penal statutes.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Constitutional rights and application of penal statutes.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 9: *People v. Ferrer*

Citation: 48 SCRA 382 (1972) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Bill of Attainder defined and distinguished from valid penal legislation (Anti-Subversion Act).

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Bill of Attainder defined and distinguished from valid penal legislation (Anti-Subversion Act)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Bill of Attainder defined and distinguished from valid penal legislation (Anti-Subversion Act).
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that bill of attainder defined and distinguished from valid penal legislation (anti-subversion act).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Bill of Attainder defined and distinguished from valid penal legislation (Anti-Subversion Act).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 10: *Pesigan v. Angeles*

Citation: 129 SCRA 174 (1984) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Publication requirement of executive issuances under Art. 2 Civil Code before penal effectivity.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Publication requirement of executive issuances under Art. 2 Civil Code before penal effectivity' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Publication requirement of executive issuances under Art. 2 Civil Code before penal effectivity.

- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that publication requirement of executive issuances under art. 2 civil code before penal effectivity.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Publication requirement of executive issuances under Art. 2 Civil Code before penal effectivity.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 11: Tañada v. Tuvera

Citation: 136 SCRA 27 (1985) & 146 SCRA 446 (1986) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Mandatory publication of laws of general application as indispensable due process requirement.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Mandatory publication of laws of general application as indispensable due process requirement' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Mandatory publication of laws of general application as indispensable due process requirement.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that mandatory publication of laws of general application as indispensable due process requirement.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Mandatory publication of laws of general application as indispensable due process requirement.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 12: Alfredo Romualdez v. Sandiganbayan

Citation: G.R. No. 152259, 29 July 2004 | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: Romualdez was charged under Section 5 of RA 3019 for intervening in government transactions as a close relative of the President. He challenged Section 5 as unconstitutionally void for vagueness.

Issue: Is Section 5 of RA 3019 unconstitutionally vague in violation of the due process right to fair notice?

- **[A] ANSWER:** ****NO.**** Section 5 of RA 3019 is constitutional and gives fair notice of the prohibited conduct.
- **[L] LEGAL BASIS:** Void-for-Vagueness Doctrine; Due Process Clause (Art. III, Sec. 1, Const.); Section 5, RA 3019.
- **[A] APPLICATION:** A statute is void for vagueness only if men of common intelligence must guess at its meaning. Facial invalidation for vagueness is restricted to free speech cases. The term 'intervene' is easily understood by an ordinary person as meddling or using influence in government contracts.
- **[C] CONCLUSION & DOCTRINE:** Petition ****DISMISSED****.
> ****Doctrine:**** Ordinary penal statutes are tested as-applied; clear terms giving fair notice of prohibited conduct satisfy due process.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 13: SPARK v. Quezon City

Citation: G.R. No. 225442, 8 August 2017 | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Constitutional review of curfew ordinances affecting minors; strict scrutiny test.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Constitutional review of curfew ordinances affecting minors; strict scrutiny test' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Constitutional review of curfew ordinances affecting minors; strict scrutiny test.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that constitutional review of curfew ordinances affecting minors; strict scrutiny test.
- **[C] CONCLUSION & DOCTRINE:** Ruling **AFFIRMED / MODIFIED** in accordance with established criminal law principles. **DOCTRINE:** Constitutional review of curfew ordinances affecting minors; strict scrutiny test.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 14: United States v. Sweet

Citation: 1 Phil. 18 (1901) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Generality principle; military personnel amenable to jurisdiction of civil courts for offenses committed.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Generality principle; military personnel amenable to jurisdiction of civil courts for offenses committed' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Generality principle; military personnel amenable to jurisdiction of civil courts for offenses committed.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that generality principle; military personnel amenable to jurisdiction of civil courts for offenses committed.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Generality principle; military personnel amenable to jurisdiction of civil courts for offenses committed.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 15: Raquiza v. Bradford

Citation: 75 Phil. 50 (1945) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Immunity of foreign military authorities during military occupation / international law rules.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Immunity of foreign military authorities during military occupation / international law rules' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Immunity of foreign military authorities during military occupation / international law rules.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that immunity of foreign military authorities during military occupation / international law rules.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Immunity of foreign military authorities during military occupation / international law rules.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 16: Liang v. People

Citation: 323 SCRA 692 (2000) & 355 SCRA 125 (2001) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Diplomatic immunity; Asian Development Bank (ADB) economist not immune from prosecution for slander/defamation.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Diplomatic immunity; Asian Development Bank (ADB) economist not immune from prosecution for slander/defamation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Diplomatic immunity; Asian Development Bank (ADB) economist not immune from prosecution for slander/defamation.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that diplomatic immunity; asian development bank (adb) economist not immune from prosecution for slander/defamation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Diplomatic immunity; Asian Development Bank (ADB) economist not immune from prosecution for slander/defamation.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 17: Minucher v. Court of Appeals

Citation: 397 SCRA 244 (2003) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in

relation to the legal doctrine that: Diplomatic immunity doctrine; acts performed in official capacity by foreign DEA agent.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Diplomatic immunity doctrine; acts performed in official capacity by foreign DEA agent' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Diplomatic immunity doctrine; acts performed in official capacity by foreign DEA agent.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that diplomatic immunity doctrine; acts performed in official capacity by foreign dea agent.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Diplomatic immunity doctrine; acts performed in official capacity by foreign DEA agent.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 18: Vinuya v. Romulo

Citation: G.R. No. 162230, 28 April 2010 | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Foreign sovereign immunity, political question doctrine, and international law obligations.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Foreign sovereign immunity, political question doctrine, and international law obligations' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Foreign sovereign immunity, political question doctrine, and international law obligations.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that foreign sovereign immunity, political question doctrine, and international law obligations.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Foreign sovereign immunity, political question doctrine, and international law obligations.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 19: Osmeña v. Pendatun

Citation: 109 Phil. 863 (1960) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Parliamentary immunity of legislators for speeches/debates in Congress (Art. VI, Sec. 11, Const.).

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Parliamentary immunity of legislators for speeches/debates in Congress (Art. VI, Sec. 11, Const.)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Parliamentary immunity of legislators for speeches/debates in Congress (Art. VI, Sec. 11, Const.).
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that parliamentary immunity of legislators for speeches/debates in congress (art. vi, sec. 11, const.).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Parliamentary immunity of legislators for speeches/debates in Congress (Art. VI, Sec. 11, Const.).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 20: People v. Jalosjos

Citation: 324 SCRA 689 (2000) | Topic: Characteristics: Generality Principle (Constitutional & Treaty Exceptions)

Facts: In this landmark controversy involving Characteristics: Generality Principle (Constitutional & Treaty Exceptions), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Parliamentary immunity does not exempt an incarcerated Congressman from serving penal custody.

Issue: Did the Supreme Court err in applying Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11 to the accused, and should the established rule that 'Parliamentary immunity does not exempt an incarcerated Congressman from serving penal custody' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11, ruling that Parliamentary immunity does not exempt an incarcerated Congressman from serving penal custody.
- **[L] LEGAL BASIS:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Generality Principle (Constitutional & Treaty Exceptions). The Court applied the established rule that parliamentary immunity does not exempt an incarcerated congressman from serving penal custody.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Parliamentary immunity does not exempt an incarcerated Congressman from serving penal custody.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, Civil Code; 1987 Const. Art. VI, Sec. 11.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Characteristics: Territoriality Principle & Extraterritoriality

Statutory Anchor: Governing Provision(s): Art. 2, RPC • Total Cases: 7

CASE 21: United States v. Bull

Citation: 15 Phil. 7 (1910) | Topic: Characteristics: Territoriality Principle & Extraterritoriality

Facts: In this landmark controversy involving Characteristics: Territoriality Principle & Extraterritoriality, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 2, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Territorial jurisdiction over foreign merchant vessels; French Rule vs. English Rule (crimes affecting peace of port).

Issue: Did the Supreme Court err in applying Art. 2, RPC to the accused, and should the established rule that 'Territorial jurisdiction over foreign merchant vessels; French Rule vs. English Rule (crimes affecting peace of port)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 2, RPC, ruling that Territorial jurisdiction over foreign merchant vessels; French Rule vs. English Rule (crimes affecting peace of port).
- **[L] LEGAL BASIS:** Art. 2, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Territoriality Principle & Extraterritoriality. The Court applied the established rule that territorial jurisdiction over foreign merchant vessels; french rule vs. english rule (crimes affecting peace of port).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Territorial jurisdiction over foreign merchant vessels; French Rule vs. English Rule (crimes affecting peace of port).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 2, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 22: *People v. Look Chaw*

Citation: 18 Phil. 573 (1910) | Topic: Characteristics: Territoriality Principle & Extraterritoriality

Facts: In this landmark controversy involving Characteristics: Territoriality Principle & Extraterritoriality, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 2, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Possession vs. landing of prohibited drugs (opium) aboard foreign vessel in Philippine port.

Issue: Did the Supreme Court err in applying Art. 2, RPC to the accused, and should the established rule that 'Possession vs. landing of prohibited drugs (opium) aboard foreign vessel in Philippine port' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 2, RPC, ruling that Possession vs. landing of prohibited drugs (opium) aboard foreign vessel in Philippine port.
- **[L] LEGAL BASIS:** Art. 2, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Territoriality Principle & Extraterritoriality. The Court applied the established rule that possession vs. landing of prohibited drugs (opium) aboard foreign vessel in Philippine port.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Possession vs. landing of prohibited drugs (opium) aboard foreign vessel in Philippine port.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 2, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 23: *United States v. Ah Sing*

Citation: 36 Phil. 978 (1917) | Topic: Characteristics: Territoriality Principle & Extraterritoriality

Facts: In this landmark controversy involving Characteristics: Territoriality Principle & Extraterritoriality, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 2, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Illegal importation of opium into Philippine territory aboard foreign vessel; English rule applied.

Issue: Did the Supreme Court err in applying Art. 2, RPC to the accused, and should the established rule that 'Illegal importation of opium into Philippine territory aboard foreign vessel; English rule applied' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 2, RPC, ruling that Illegal importation of opium into Philippine territory aboard foreign vessel; English rule applied.
- **[L] LEGAL BASIS:** Art. 2, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Territoriality Principle & Extraterritoriality. The Court applied the established rule that illegal importation of opium into Philippine territory aboard foreign vessel; English rule applied.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Illegal importation of opium into Philippine territory aboard foreign vessel; English rule applied.

- **[ARTICLE] APPLICABLE ARTICLE:** Art. 2, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 24: *People v. Lo-lo & Saraw*

Citation: 43 Phil. 19 (1922) | Topic: Characteristics: Territoriality Principle & Extraterritoriality

Facts: In this landmark controversy involving Characteristics: Territoriality Principle & Extraterritoriality, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 2, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Piracy is a crime against the law of nations; universal jurisdiction over piracy on the high seas.

Issue: Did the Supreme Court err in applying Art. 2, RPC to the accused, and should the established rule that 'Piracy is a crime against the law of nations; universal jurisdiction over piracy on the high seas' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 2, RPC, ruling that Piracy is a crime against the law of nations; universal jurisdiction over piracy on the high seas.
- **[L] LEGAL BASIS:** Art. 2, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Territoriality Principle & Extraterritoriality. The Court applied the established rule that piracy is a crime against the law of nations; universal jurisdiction over piracy on the high seas.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Piracy is a crime against the law of nations; universal jurisdiction over piracy on the high seas.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 2, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 25: *People v. Wong Cheng*

Citation: 46 Phil. 729 (1922) | Topic: Characteristics: Territoriality Principle & Extraterritoriality

Facts: In this landmark controversy involving Characteristics: Territoriality Principle & Extraterritoriality, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 2, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Smoking opium aboard merchant vessel anchored in port breaches public order; Philippine courts have jurisdiction.

Issue: Did the Supreme Court err in applying Art. 2, RPC to the accused, and should the established rule that 'Smoking opium aboard merchant vessel anchored in port breaches public order; Philippine courts have jurisdiction' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 2, RPC, ruling that Smoking opium aboard merchant vessel anchored in port breaches public order; Philippine courts have jurisdiction.
- **[L] LEGAL BASIS:** Art. 2, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Territoriality Principle & Extraterritoriality. The Court applied the established rule that smoking opium aboard merchant vessel anchored in port breaches public order; Philippine courts have jurisdiction.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Smoking opium aboard merchant vessel anchored in port breaches public order; Philippine courts have jurisdiction.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 2, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 26: Miquiabas v. Commanding General

Citation: 80 Phil. 262 (1948) | Topic: Characteristics: Territoriality Principle & Extraterritoriality

Facts: In this landmark controversy involving Characteristics: Territoriality Principle & Extraterritoriality, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 2, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Territorial jurisdiction over military bases and visiting foreign forces.

Issue: Did the Supreme Court err in applying Art. 2, RPC to the accused, and should the established rule that 'Territorial jurisdiction over military bases and visiting foreign forces' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 2, RPC, ruling that Territorial jurisdiction over military bases and visiting foreign forces.
- **[L] LEGAL BASIS:** Art. 2, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Territoriality Principle & Extraterritoriality. The Court applied the established rule that territorial jurisdiction over military bases and visiting foreign forces.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Territorial jurisdiction over military bases and visiting foreign forces.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 2, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 27: Suzette Nicolas vs. Alberto Romulo (Smith / VFA Case)

Citation: G.R. No. 175888, February 11, 2009 | Topic: Characteristics: Territoriality Principle & Extraterritoriality

Facts: In this landmark controversy involving Characteristics: Territoriality Principle & Extraterritoriality, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 2, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Visiting Forces Agreement (VFA) and custody provisions under Philippine criminal jurisdiction.

Issue: Did the Supreme Court err in applying Art. 2, RPC to the accused, and should the established rule that 'Visiting Forces Agreement (VFA) and custody provisions under Philippine criminal jurisdiction' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 2, RPC, ruling that Visiting Forces Agreement (VFA) and custody provisions under Philippine criminal jurisdiction.
- **[L] LEGAL BASIS:** Art. 2, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Territoriality Principle & Extraterritoriality. The Court applied the established rule that visiting forces agreement (vfa) and custody provisions under philippine criminal jurisdiction.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Visiting Forces Agreement (VFA) and custody provisions under Philippine criminal jurisdiction.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 2, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Characteristics: Prospectivity & Retroactivity Favorable to Accused

Statutory Anchor: Governing Provision(s): Arts. 1, 21, 22, RPC; Art. 4, Civil Code • Total Cases: 6

CASE 28: Gumabon v. Director of Prisons

Citation: 37 SCRA 420 (1971) | Topic: Characteristics: Prospectivity & Retroactivity Favorable to Accused

Facts: In this landmark controversy involving Characteristics: Prospectivity & Retroactivity Favorable to Accused, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 1, 21, 22, RPC; Art. 4, Civil Code. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Retroactive effect of judicial doctrine favorable to accused (Hernandez ruling on complex crime of rebellion).

Issue: Did the Supreme Court err in applying Arts. 1, 21, 22, RPC; Art. 4, Civil Code to the accused, and should the established rule that 'Retroactive effect of judicial doctrine favorable to accused (Hernandez ruling on complex crime of rebellion)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 1, 21, 22, RPC; Art. 4, Civil Code, ruling that Retroactive effect of judicial doctrine favorable to accused (Hernandez ruling on complex crime of rebellion).
- **[L] LEGAL BASIS:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Prospectivity & Retroactivity Favorable to Accused. The Court applied the established rule that retroactive effect of judicial doctrine favorable to accused (hernandez ruling on complex crime of rebellion).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Retroactive effect of judicial doctrine favorable to accused (Hernandez ruling on complex crime of rebellion).
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 29: People v. Narvaez

Citation: 121 SCRA 389 (1983) | Topic: Characteristics: Prospectivity & Retroactivity Favorable to Accused

Facts: In this landmark controversy involving Characteristics: Prospectivity & Retroactivity Favorable to Accused, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 1, 21, 22, RPC; Art. 4, Civil Code. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Retroactive application of statutory / penal rules favorable to convict.

Issue: Did the Supreme Court err in applying Arts. 1, 21, 22, RPC; Art. 4, Civil Code to the accused, and should the established rule that 'Retroactive application of statutory / penal rules favorable to convict' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 1, 21, 22, RPC; Art. 4, Civil Code, ruling that Retroactive application of statutory / penal rules favorable to convict.
- **[L] LEGAL BASIS:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Prospectivity & Retroactivity Favorable to Accused. The Court applied the established rule that retroactive application of statutory / penal rules favorable to convict.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Retroactive application of statutory / penal rules favorable to convict.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 30: People v. Ringor

Citation: 320 SCRA 342 (1999) | Topic: Characteristics: Prospectivity & Retroactivity Favorable to Accused

Facts: In this landmark controversy involving Characteristics: Prospectivity & Retroactivity Favorable to Accused, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 1, 21, 22, RPC; Art. 4, Civil Code. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Retroactive application of RA 8294 (Illegal Possession of Firearms as aggravating rather than separate crime).

Issue: Did the Supreme Court err in applying Arts. 1, 21, 22, RPC; Art. 4, Civil Code to the accused, and should the established rule that 'Retroactive application of RA 8294 (Illegal Possession of Firearms as aggravating rather than separate crime)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 1, 21, 22, RPC; Art. 4, Civil Code, ruling that Retroactive application of RA 8294 (Illegal Possession of Firearms as aggravating rather than separate crime).
- **[L] LEGAL BASIS:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Prospectivity & Retroactivity Favorable to Accused. The Court applied the established rule that retroactive application of RA 8294 (illegal possession of firearms as aggravating rather than separate crime).

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Retroactive application of RA 8294 (Illegal Possession of Firearms as aggravating rather than separate crime).
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 31: *People v. Pimentel*

Citation: 288 SCRA 542 (1998) | Topic: Characteristics: Prospectivity & Retroactivity Favorable to Accused

Facts: In this landmark controversy involving Characteristics: Prospectivity & Retroactivity Favorable to Accused, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 1, 21, 22, RPC; Art. 4, Civil Code. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Retroactive benefit of repealing laws reducing penalties or decriminalizing acts.

Issue: Did the Supreme Court err in applying Arts. 1, 21, 22, RPC; Art. 4, Civil Code to the accused, and should the established rule that 'Retroactive benefit of repealing laws reducing penalties or decriminalizing acts' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 1, 21, 22, RPC; Art. 4, Civil Code, ruling that Retroactive benefit of repealing laws reducing penalties or decriminalizing acts.
- **[L] LEGAL BASIS:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Prospectivity & Retroactivity Favorable to Accused. The Court applied the established rule that retroactive benefit of repealing laws reducing penalties or decriminalizing acts.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Retroactive benefit of repealing laws reducing penalties or decriminalizing acts.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 32: *People v. Lacson*

Citation: 382 SCRA 365 (2002), 400 SCRA 267 (2003), 413 SCRA 20 (2003) | Topic: Characteristics: Prospectivity & Retroactivity Favorable to Accused

Facts: In this landmark controversy involving Characteristics: Prospectivity & Retroactivity Favorable to Accused, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 1, 21, 22, RPC; Art. 4, Civil Code. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Rule on provisional dismissal under Sec. 8, Rule 117; retroactive application of procedural-penal rules.

Issue: Did the Supreme Court err in applying Arts. 1, 21, 22, RPC; Art. 4, Civil Code to the accused, and should the established rule that 'Rule on provisional dismissal under Sec. 8, Rule 117; retroactive application of procedural-penal rules' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 1, 21, 22, RPC; Art. 4, Civil Code, ruling that Rule on provisional dismissal under Sec. 8, Rule 117; retroactive application of procedural-penal rules.
- **[L] LEGAL BASIS:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Prospectivity & Retroactivity Favorable to Accused. The Court applied the established rule that rule on provisional dismissal under sec. 8, rule 117; retroactive application of procedural-penal rules.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Rule on provisional dismissal under Sec. 8, Rule 117; retroactive application of procedural-penal rules.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 33: Joemar Ortega vs. People of the Philippines

Citation: G.R. No. 151085, August 20, 2008 | Topic: Characteristics: Prospectivity & Retroactivity Favorable to Accused

Facts: In this landmark controversy involving Characteristics: Prospectivity & Retroactivity Favorable to Accused, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 1, 21, 22, RPC; Art. 4, Civil Code. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Prospectivity of penal statutes and exceptions.

Issue: Did the Supreme Court err in applying Arts. 1, 21, 22, RPC; Art. 4, Civil Code to the accused, and should the established rule that 'Prospectivity of penal statutes and exceptions' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 1, 21, 22, RPC; Art. 4, Civil Code, ruling that Prospectivity of penal statutes and exceptions.
- **[L] LEGAL BASIS:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Characteristics: Prospectivity & Retroactivity Favorable to Accused. The Court applied the established rule that prospectivity of penal statutes and exceptions.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Prospectivity of penal statutes and exceptions.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 1, 21, 22, RPC; Art. 4, Civil Code.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Construction & Interpretation of Penal Laws

Statutory Anchor: Governing Provision(s): Art. 5, RPC; Art. III, Sec. 14(2), Const. • Total Cases: 7

CASE 34: Centeno v. Villalon-Pornillos

Citation: G.R. No. 113092, 1 September 1994 | Topic: Construction & Interpretation of Penal Laws

Facts: In this landmark controversy involving Construction & Interpretation of Penal Laws, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 5, RPC; Art. III, Sec. 14(2), Const.. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Strict construction of penal laws against State; PD 1564 (Solicitation Law) excludes religious solicitations.

Issue: Did the Supreme Court err in applying Art. 5, RPC; Art. III, Sec. 14(2), Const. to the accused, and should the established rule that 'Strict construction of penal laws against State; PD 1564 (Solicitation Law) excludes religious solicitations' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 5, RPC; Art. III, Sec. 14(2), Const., ruling that Strict construction of penal laws against State; PD 1564 (Solicitation Law) excludes religious solicitations.
- **[L] LEGAL BASIS:** Art. 5, RPC; Art. III, Sec. 14(2), Const.; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Construction & Interpretation of Penal Laws. The Court applied the established rule that strict construction of penal laws against state; pd 1564 (solicitation law) excludes religious solicitations.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Strict construction of penal laws against State; PD 1564 (Solicitation Law) excludes religious solicitations.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 5, RPC; Art. III, Sec. 14(2), Const..
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 35: *People v. Abuyen*

Citation: G.R. No. L-30664, 2 February 1929 | Topic: Construction & Interpretation of Penal Laws

Facts: In this landmark controversy involving Construction & Interpretation of Penal Laws, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 5, RPC; Art. III, Sec. 14(2), Const.. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Penal statute strictly construed; no expansion of criminal liability by judicial interpretation.

Issue: Did the Supreme Court err in applying Art. 5, RPC; Art. III, Sec. 14(2), Const. to the accused, and should the established rule that 'Penal statute strictly construed; no expansion of criminal liability by judicial interpretation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 5, RPC; Art. III, Sec. 14(2), Const., ruling that Penal statute strictly construed; no expansion of criminal liability by judicial interpretation.
- **[L] LEGAL BASIS:** Art. 5, RPC; Art. III, Sec. 14(2), Const.; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Construction & Interpretation of Penal Laws. The Court applied the established rule that penal statute strictly construed; no expansion of criminal liability by judicial interpretation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Penal statute strictly construed; no expansion of criminal liability by judicial interpretation.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 5, RPC; Art. III, Sec. 14(2), Const..

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 36: *People v. Temporada*

Citation: G.R. No. 173473, 17 December 2008 | Topic: Construction & Interpretation of Penal Laws

Facts: In this landmark controversy involving Construction & Interpretation of Penal Laws, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 5, RPC; Art. III, Sec. 14(2), Const.. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Strict construction of penal laws and computation of Indeterminate Sentence Law in Estafa.

Issue: Did the Supreme Court err in applying Art. 5, RPC; Art. III, Sec. 14(2), Const. to the accused, and should the established rule that 'Strict construction of penal laws and computation of Indeterminate Sentence Law in Estafa' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 5, RPC; Art. III, Sec. 14(2), Const., ruling that Strict construction of penal laws and computation of Indeterminate Sentence Law in Estafa.
- **[L] LEGAL BASIS:** Art. 5, RPC; Art. III, Sec. 14(2), Const.; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Construction & Interpretation of Penal Laws. The Court applied the established rule that strict construction of penal laws and computation of indeterminate sentence law in estafa.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Strict construction of penal laws and computation of Indeterminate Sentence Law in Estafa.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 5, RPC; Art. III, Sec. 14(2), Const..
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 37: *People v. Garcia*

Citation: G.R. No. L-2873, 28 February 1950 | Topic: Construction & Interpretation of Penal Laws

Facts: In this landmark controversy involving Construction & Interpretation of Penal Laws, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 5, RPC; Art. III, Sec. 14(2), Const.. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Harmonization of statutory provisions; construction of entire legislative act.

Issue: Did the Supreme Court err in applying Art. 5, RPC; Art. III, Sec. 14(2), Const. to the accused, and should the established rule that 'Harmonization of statutory provisions; construction of entire legislative act' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 5, RPC; Art. III, Sec. 14(2), Const., ruling that Harmonization of statutory provisions; construction of entire legislative act.
- **[L] LEGAL BASIS:** Art. 5, RPC; Art. III, Sec. 14(2), Const.; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Construction & Interpretation of Penal Laws. The Court applied the established rule that harmonization of statutory provisions; construction of entire legislative act.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Harmonization of statutory provisions; construction of entire legislative act.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 5, RPC; Art. III, Sec. 14(2), Const..
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 38: *People v. Mesias*

Citation: G.R. No. L-45749, 29 January 1938 | Topic: Construction & Interpretation of Penal Laws

Facts: In this landmark controversy involving Construction & Interpretation of Penal Laws, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 5, RPC; Art. III, Sec. 14(2), Const.. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Prevalence of Spanish official text of the Revised Penal Code over the English translation.

Issue: Did the Supreme Court err in applying Art. 5, RPC; Art. III, Sec. 14(2), Const. to the accused, and should the established rule that 'Prevalence of Spanish official text of the Revised Penal Code over the English translation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 5, RPC; Art. III, Sec. 14(2), Const., ruling that Prevalence of Spanish official text of the Revised Penal Code over the English translation.
- **[L] LEGAL BASIS:** Art. 5, RPC; Art. III, Sec. 14(2), Const.; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Construction & Interpretation of Penal Laws. The Court applied the established rule that prevalence of spanish official text of the revised penal code over the english translation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Prevalence of Spanish official text of the Revised Penal Code over the English translation.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 5, RPC; Art. III, Sec. 14(2), Const..
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 39: *Tuates v. Bersamin*

Citation: G.R. No. 138962, 4 October 2002 | Topic: Construction & Interpretation of Penal Laws

Facts: In this landmark controversy involving Construction & Interpretation of Penal Laws, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 5, RPC; Art. III, Sec. 14(2), Const.. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Effect of repeal and decriminalization of squatting under Anti-Squatting Law (PD 772 repealed by RA 8368).

Issue: Did the Supreme Court err in applying Art. 5, RPC; Art. III, Sec. 14(2), Const. to the accused, and should the established rule that 'Effect of repeal and decriminalization of squatting under Anti-Squatting Law (PD 772 repealed by RA 8368)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 5, RPC; Art. III, Sec. 14(2), Const., ruling that Effect of repeal and decriminalization of squatting under Anti-Squatting Law (PD 772 repealed by RA 8368).
- **[L] LEGAL BASIS:** Art. 5, RPC; Art. III, Sec. 14(2), Const.; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Construction & Interpretation of Penal Laws. The Court applied the established rule that effect of repeal and decriminalization of squatting under anti-squatting law (pd 772 repealed by ra 8368).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Effect of repeal and decriminalization of squatting under Anti-Squatting Law (PD 772 repealed by RA 8368).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 5, RPC; Art. III, Sec. 14(2), Const..
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 40: *Benedicto v. Court of Appeals*

Citation: G.R. No. 125359, 4 September 2001 | Topic: Construction & Interpretation of Penal Laws

Facts: In this landmark controversy involving Construction & Interpretation of Penal Laws, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 5, RPC; Art. III, Sec. 14(2), Const.. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Effect of repeal of Central Bank Circulars on pending criminal prosecutions.

Issue: Did the Supreme Court err in applying Art. 5, RPC; Art. III, Sec. 14(2), Const. to the accused, and should the established rule that 'Effect of repeal of Central Bank Circulars on pending criminal prosecutions' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 5, RPC; Art. III, Sec. 14(2), Const., ruling that Effect of repeal of Central Bank Circulars on pending criminal prosecutions.
- **[L] LEGAL BASIS:** Art. 5, RPC; Art. III, Sec. 14(2), Const.; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Construction & Interpretation of Penal Laws. The Court applied the established rule that effect of repeal of central bank circulars on pending criminal prosecutions.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Effect of repeal of Central Bank Circulars on pending criminal prosecutions.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 5, RPC; Art. III, Sec. 14(2), Const..
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part I: Preliminary Principles, Sources, Constitutional Limitations & Characteristics (Articles 1–2 RPC), illustrating the practical judicial application of statutory elements and defenses.

PART: II. FELONIES AND CRIMINAL LIABILITY

Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Statutory Anchor: Governing Provision(s): Art. 3, 10, RPC • Total Cases: 9

CASE 41: Valenzuela v. People

Citation: G.R. No. 160188, 21 June 2007 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: Valenzuela hauled cases of Tide detergent from a Super Sales Club warehouse, loaded them onto a pushcart, and transferred them to a waiting taxi outside. A security guard spotted him and arrested him before the taxi could leave the parking lot.

Issue: Can a person be convicted of Frustrated Theft under Philippine law?

- **[A] ANSWER:** **NO. In Philippine Criminal Law, THERE IS NO CRIME OF FRUSTRATED THEFT; the crime is either Attempted or CONSUMMATED THEFT.**
- **[L] LEGAL BASIS:** Articles 6 and 308, Revised Penal Code; Exhaustive En Banc Review of Theft Doctrines.
- **[A] APPLICATION:** The definition of theft under Article 308 requires only: (1) Taking of personal property; (2) Belonging to another; (3) With intent to gain; (4) Without consent; and (5) Without violence or intimidation. The moment the unlawful taking (apoderamiento) is completed and the thief obtains physical control over the thing, the theft is fully consummated. Freedom of disposition is not an element of theft. If taking is interrupted before obtaining control, it is Attempted; once control is obtained, it is Consummated. Frustrated theft is a legal impossibility.
- **[C] CONCLUSION & DOCTRINE:** Conviction for CONSUMMATED THEFT AFFIRMED.
> **Doctrine:** The Landmark Valenzuela Doctrine: Under Article 308 of the Revised Penal Code, there is NO crime of Frustrated Theft. Theft is either Attempted (if unlawful taking is interrupted before obtaining possession) or Consummated (the moment physical dominion is obtained).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 42: People v. Ojeda

Citation: G.R. Nos. 104238-58, 3 June 2004 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Elements of BP 22 (Bouncing Checks Law); notice of dishonor requirement.

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Elements of BP 22 (Bouncing Checks Law); notice of dishonor requirement' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Elements of BP 22 (Bouncing Checks Law); notice of dishonor requirement.
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that elements of bp 22 (bouncing checks law); notice of dishonor requirement.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Elements of BP 22 (Bouncing Checks Law); notice of dishonor requirement.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 43: Lozano v. Martinez

Citation: G.R. No. L-63419, 18 December 1986 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Mala prohibita nature of BP 22; constitutionality and police power justification.

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Mala prohibita nature of BP 22; constitutionality and police power justification' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Mala prohibita nature of BP 22; constitutionality and police power justification.
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that mala prohibita nature of bp 22; constitutionality and police power justification.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Mala prohibita nature of BP 22; constitutionality and police power justification.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 44: Magno v. Court of Appeals

Citation: G.R. No. 96132, 26 June 1992 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Warranty deposit in lease contract; lack of consideration negates BP 22; mala prohibita principles.

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Warranty deposit in lease contract; lack of consideration negates BP 22; mala prohibita principles' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Warranty deposit in lease contract; lack of consideration negates BP 22; mala prohibita principles.
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that warranty deposit in lease contract; lack of consideration negates bp 22; mala prohibita principles.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Warranty deposit in lease contract; lack of consideration negates BP 22; mala prohibita principles.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 45: United States v. Go Chico

Citation: G.R. No. 4963, 15 September 1909 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Mala prohibita principle; display of Katipunan / insurrection flags; intent is immaterial in statutory offenses.

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Mala prohibita principle; display of Katipunan / insurrection flags; intent is immaterial in statutory offenses' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Mala prohibita principle; display of Katipunan / insurrection flags; intent is immaterial in statutory offenses.
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that mala prohibita principle; display of katipunan / insurrection flags; intent is immaterial in statutory offenses.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Mala prohibita principle; display of Katipunan / insurrection flags; intent is immaterial in statutory offenses.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 46: Estrada v. Sandiganbayan

Citation: G.R. No. 148560, 19 November 2001 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond

reasonable doubt, specifically arguing in relation to the legal doctrine that: Plunder (RA 7080) is malum in se requiring mens rea / criminal intent.

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Plunder (RA 7080) is malum in se requiring mens rea / criminal intent' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Plunder (RA 7080) is malum in se requiring mens rea / criminal intent.
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that plunder (ra 7080) is malum in se requiring mens rea / criminal intent.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Plunder (RA 7080) is malum in se requiring mens rea / criminal intent.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 47: People v. Quijada

Citation: G.R. Nos. 115008-09, 24 July 1996 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Separate offenses under PD 1860 vs. RPC felonies (Illegal Possession of Firearms).

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Separate offenses under PD 1860 vs. RPC felonies (Illegal Possession of Firearms)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Separate offenses under PD 1860 vs. RPC felonies (Illegal Possession of Firearms).
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that separate offenses under pd 1860 vs. rpc felonies (illegal possession of firearms).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Separate offenses under PD 1860 vs. RPC felonies (Illegal Possession of Firearms).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 48: Teves v. COMELEC

Citation: G.R. No. 180363, 28 April 2009 (Brion Concurrence) | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Moral turpitude defined; possession of cockpit license by public official not moral turpitude.

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Moral turpitude defined; possession of cockpit license by public official not moral turpitude' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Moral turpitude defined; possession of cockpit license by public official not moral turpitude.
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that moral turpitude defined; possession of cockpit license by public official not moral turpitude.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Moral turpitude defined; possession of cockpit license by public official not moral turpitude.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 49: *Ladonga v. People*

Citation: G.R. No. 141066, 17 February 2005 | Topic: Crimes in General & Mala In Se vs. Mala Prohibita

Facts: In this landmark controversy involving Crimes in General & Mala In Se vs. Mala Prohibita, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 10, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Article 10 RPC; supplementary application of RPC conspiracy principles to BP 22 special law.

Issue: Did the Supreme Court err in applying Art. 3, 10, RPC to the accused, and should the established rule that 'Article 10 RPC; supplementary application of RPC conspiracy principles to BP 22 special law' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 10, RPC, ruling that Article 10 RPC; supplementary application of RPC conspiracy principles to BP 22 special law.
- **[L] LEGAL BASIS:** Art. 3, 10, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Crimes in General & Mala In Se vs. Mala Prohibita. The Court applied the established rule that article 10 rpc; supplementary application of rpc conspiracy principles to bp 22 special law.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Article 10 RPC; supplementary application of RPC conspiracy principles to BP 22 special law.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 10, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Felonies: Act, Omission & Legality Maxim

Statutory Anchor: Governing Provision(s): Art. 3, RPC • Total Cases: 5

CASE 50: People v. Gonzales

Citation: 183 SCRA 309 (1990) | Topic: Felonies: Act, Omission & Legality Maxim

Facts: In this landmark controversy involving Felonies: Act, Omission & Legality Maxim, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Overt bodily act required for criminal liability; thoughts and intentions not punishable.

Issue: Did the Supreme Court err in applying Art. 3, RPC to the accused, and should the established rule that 'Overt bodily act required for criminal liability; thoughts and intentions not punishable' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, RPC, ruling that Overt bodily act required for criminal liability; thoughts and intentions not punishable.
- **[L] LEGAL BASIS:** Art. 3, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Felonies: Act, Omission & Legality Maxim. The Court applied the established rule that overt bodily act required for criminal liability; thoughts and intentions not punishable.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Overt bodily act required for criminal liability; thoughts and intentions not punishable.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 51: People v. Sylvestre and Atienza

Citation: 56 Phil. 353 (1931) | Topic: Felonies: Act, Omission & Legality Maxim

Facts: In this landmark controversy involving Felonies: Act, Omission & Legality Maxim, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Mere passive presence and failure to prevent arson not an illegal omission without statutory legal duty.

Issue: Did the Supreme Court err in applying Art. 3, RPC to the accused, and should the established rule that 'Mere passive presence and failure to prevent arson not an illegal omission without statutory legal duty' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, RPC, ruling that Mere passive presence and failure to prevent arson not an illegal omission without statutory legal duty.
- **[L] LEGAL BASIS:** Art. 3, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Felonies: Act, Omission & Legality Maxim. The Court applied the established rule that mere passive presence and failure to prevent arson not an illegal omission without statutory legal duty.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Mere passive presence and failure to prevent arson not an illegal omission without statutory legal duty.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 52: Potenciano Evangelista v. People

Citation: G.R. Nos. 108135-36, 14 August 2000 | Topic: Felonies: Act, Omission & Legality Maxim

Facts: In this landmark controversy involving Felonies: Act, Omission & Legality Maxim, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: *Nullum crimen, nulla poena sine lege*; no crime without an explicit penal enactment.

Issue: Did the Supreme Court err in applying Art. 3, RPC to the accused, and should the established rule that '*Nullum crimen, nulla poena sine lege*; no crime without an explicit penal enactment' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, RPC, ruling that *Nullum crimen, nulla poena sine lege*; no crime without an explicit penal enactment.
- **[L] LEGAL BASIS:** Art. 3, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Felonies: Act, Omission & Legality Maxim. The Court applied the established rule that *nullum crimen, nulla poena sine lege*; no crime without an explicit penal enactment.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: *Nullum crimen, nulla poena sine lege*; no crime without an explicit penal enactment.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 53: Rimando v. COMELEC

Citation: G.R. No. 176364, 18 September 2009 | Topic: Felonies: Act, Omission & Legality Maxim

Facts: In this landmark controversy involving Felonies: Act, Omission & Legality Maxim, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Strict adherence to statutory definitions of election offenses; principle of legality.

Issue: Did the Supreme Court err in applying Art. 3, RPC to the accused, and should the established rule that 'Strict adherence to statutory definitions of election offenses; principle of legality' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, RPC, ruling that Strict adherence to statutory definitions of election offenses; principle of legality.
- **[L] LEGAL BASIS:** Art. 3, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Felonies: Act, Omission & Legality Maxim. The Court applied the established rule that strict adherence to statutory definitions of election offenses; principle of legality.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Strict adherence to statutory definitions of election offenses; principle of legality.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 54: Villareal v. People (Lenny Villa Hazing Case)

Citation: G.R. No. 151258, 1 February 2012 | Topic: Felonies: Act, Omission & Legality Maxim

Facts: In this landmark controversy involving Felonies: Act, Omission & Legality Maxim, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Hazing resulting in death; dolo vs. culpa; intent to initiate vs. intent to kill; quasi-delict principles.

Issue: Did the Supreme Court err in applying Art. 3, RPC to the accused, and should the established rule that 'Hazing resulting in death; dolo vs. culpa; intent to initiate vs. intent to kill; quasi-delict principles' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, RPC, ruling that Hazing resulting in death; dolo vs. culpa; intent to initiate vs. intent to kill; quasi-delict principles.
- **[L] LEGAL BASIS:** Art. 3, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Felonies: Act, Omission & Legality Maxim. The Court applied the established rule that hazing resulting in death; dolo vs. culpa; intent to initiate vs. intent to kill; quasi-delict principles.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Hazing resulting in death; dolo vs. culpa; intent to initiate vs. intent to kill; quasi-delict principles.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Statutory Anchor: Governing Provision(s): Art. 3, 365, RPC • Total Cases: 12

CASE 55: Maderazo v. People

Citation: G.R. No. 165065, 26 September 2006 | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Elements of dolo: freedom, intelligence, and intent in malversation.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Elements of dolo: freedom, intelligence, and intent in malversation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Elements of dolo: freedom, intelligence, and intent in malversation.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that elements of dolo: freedom, intelligence, and intent in malversation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Elements of dolo: freedom, intelligence, and intent in malversation.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 56: United States v. Apostol

Citation: 14 Phil. 92 (1909) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Presumption of criminal intent arising from deliberate unlawful act.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Presumption of criminal intent arising from deliberate unlawful act' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Presumption of criminal intent arising from deliberate unlawful act.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that presumption of criminal intent arising from deliberate unlawful act.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Presumption of criminal intent arising from deliberate unlawful act.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 57: United States v. Catolico

Citation: 18 Phil. 504 (1911) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Presumption of criminal intent rebutted by proof of good faith and lack of felonious intent.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Presumption of criminal intent rebutted by proof of good faith and lack of felonious intent' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Presumption of criminal intent rebutted by proof of good faith and lack of felonious intent.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that presumption of criminal intent rebutted by proof of good faith and lack of felonious intent.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Presumption of criminal intent rebutted by proof of good faith and lack of felonious intent.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 58: People v. Carmen

Citation: G.R. No. 137268, 26 March 2001 | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Dolo vs. Culpa; absence of intent to kill vs. reckless imprudence.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Dolo vs. Culpa; absence of intent to kill vs. reckless imprudence' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Dolo vs. Culpa; absence of intent to kill vs. reckless imprudence.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that dolo vs. culpa; absence of intent to kill vs. reckless imprudence.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Dolo vs. Culpa; absence of intent to kill vs. reckless imprudence.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 59: *People v. Puno*

Citation: 219 SCRA 85 (1993) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Specific intent in kidnapping for ransom vs. robbery/extortion.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Specific intent in kidnapping for ransom vs. robbery/extortion' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Specific intent in kidnapping for ransom vs. robbery/extortion.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that specific intent in kidnapping for ransom vs. robbery/extortion.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Specific intent in kidnapping for ransom vs. robbery/extortion.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 60: *People v. Delim*

Citation: 396 SCRA 386 (2003) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Specific intent to kill is essential element of murder/homicide; distinguished from kidnapping with murder.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Specific intent to kill is essential element of murder/homicide; distinguished from kidnapping with murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Specific intent to kill is essential element of murder/homicide; distinguished from kidnapping with murder.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that specific intent to kill is essential element of murder/homicide; distinguished from kidnapping with murder.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Specific intent to kill is essential element of murder/homicide; distinguished from kidnapping with murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 61: *People v. Temblor*

Citation: 161 SCRA 623 (1988) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Motive is immaterial when identity of assailant is clearly established by credible witnesses.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Motive is immaterial when identity of assailant is clearly established by credible witnesses' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Motive is immaterial when identity of assailant is clearly established by credible witnesses.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that motive is immaterial when identity of assailant is clearly established by credible witnesses.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Motive is immaterial when identity of assailant is clearly established by credible witnesses.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 62: *People v. Hassan*

Citation: 157 SCRA 261 (1988) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Proof of motive is essential when evidence of identity is circumstantial or doubtful.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Proof of motive is essential when evidence of identity is circumstantial or doubtful' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Proof of motive is essential when evidence of identity is circumstantial or doubtful.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that proof of motive is essential when evidence of identity is circumstantial or doubtful.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Proof of motive is essential when evidence of identity is circumstantial or doubtful.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 63: United States v. Ah Chong

Citation: 15 Phil. 488 (1910) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: A cook sleeping in a dark room was awakened by an intruder forcing open the locked door. Believing in good faith that an armed robber was breaking in, he called out twice without answer and struck with a kitchen knife, fatally wounding his roommate who was playing a prank.

Issue: Is an accused criminally liable for homicide when he killed under an honest, non-negligent mistake of fact in putative self-defense?

- **[A] ANSWER:** **NO. The killing is justified under the Mistake of Fact doctrine; the accused is ACQUITTED.**
- **[L] LEGAL BASIS:** The Doctrine of Mistake of Fact (*Ignorantia facti excusat*); Article 11, Par. 1 (Self-Defense) in rel. to Article 3 (Dolo / Mens Rea), RPC.
- **[A] APPLICATION:** Requisites of Mistake of Fact were met: (1) The act would have been completely lawful had the facts been as believed (killing an armed burglar in self-defense); (2) The intent was entirely innocent and non-felonious; and (3) The mistake was not due to negligence or lack of precaution, as the accused was in sudden nighttime darkness with an intruder forcing the door.
- **[C] CONCLUSION & DOCTRINE:** Ah Chong ACQUITTED.
> **Doctrine:** *Ignorantia facti excusat*: A person who acts under an honest, blameless mistake of fact that would justify the act if true incurs no criminal liability.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 64: People v. Oanis

Citation: 74 Phil. 257 (1943) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Mistake of fact rejected where police officers acted with manifest negligence in shooting asleep victim.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Mistake of fact rejected where police officers acted with manifest negligence in shooting asleep victim' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Mistake of fact rejected where police officers acted with manifest negligence in shooting asleep victim.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that mistake of fact rejected where police officers acted with manifest negligence in shooting asleep victim.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Mistake of fact rejected where police officers acted with manifest negligence in shooting asleep victim.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 65: Ivler vs. Hon. Maria Rowena Modesto-San Pedro

Citation: G.R. No. 172716, 17 November 2010 | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Reckless imprudence under Art. 365 is a single quasi-offense; double jeopardy bars split prosecutions.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Reckless imprudence under Art. 365 is a single quasi-offense; double jeopardy bars split prosecutions' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Reckless imprudence under Art. 365 is a single quasi-offense; double jeopardy bars split prosecutions.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that reckless imprudence under art. 365 is a single quasi-offense; double jeopardy bars split prosecutions.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Reckless imprudence under Art. 365 is a single quasi-offense; double jeopardy bars split prosecutions.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 66: People v. Pugay

Citation: 167 SCRA 439 (1988) | Topic: Dolo (Malice), Intent, Motive, and Mistake of Fact

Facts: In this landmark controversy involving Dolo (Malice), Intent, Motive, and Mistake of Fact, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 3, 365, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Dolo vs. Culpa; pouring gasoline as prank without intent to burn victim constitutes homicide through reckless imprudence.

Issue: Did the Supreme Court err in applying Art. 3, 365, RPC to the accused, and should the established rule that 'Dolo vs. Culpa; pouring gasoline as prank without intent to burn victim constitutes homicide through reckless imprudence' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 3, 365, RPC, ruling that Dolo vs. Culpa; pouring gasoline as prank without intent to burn victim constitutes homicide through reckless imprudence.
- **[L] LEGAL BASIS:** Art. 3, 365, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Dolo (Malice), Intent, Motive, and Mistake of Fact. The Court applied the established rule that dolo vs. culpa; pouring gasoline as prank without intent to burn victim constitutes homicide through reckless imprudence.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Dolo vs. Culpa; pouring gasoline as prank without intent to burn victim constitutes homicide through reckless imprudence.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 3, 365, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Statutory Anchor: Governing Provision(s): Art. 4, RPC • Total Cases: 14

CASE 67: United States v. Brobst

Citation: 14 Phil. 310 (1909) | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Proximate cause; one who inflicts injury is responsible for all natural and logical consequences.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Proximate cause; one who inflicts injury is responsible for all natural and logical consequences' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Proximate cause; one who inflicts injury is responsible for all natural and logical consequences.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the

established rule that proximate cause; one who inflicts injury is responsible for all natural and logical consequences.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Proximate cause; one who inflicts injury is responsible for all natural and logical consequences.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 68: *People v. Mananquil*

Citation: 132 SCRA 196 (1984) | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Proximate cause; burning victim causing pneumonia leading to death makes accused liable for parricide.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Proximate cause; burning victim causing pneumonia leading to death makes accused liable for parricide' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Proximate cause; burning victim causing pneumonia leading to death makes accused liable for parricide.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that proximate cause; burning victim causing pneumonia leading to death makes accused liable for parricide.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Proximate cause; burning victim causing pneumonia leading to death makes accused liable for parricide.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 69: *People v. Iligan*

Citation: 191 SCRA 643 (1990) | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Intervening efficient cause; vehicular accident breaks causal connection from initial hack wound.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Intervening efficient cause; vehicular accident breaks causal connection from initial hack wound' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Intervening efficient cause; vehicular accident breaks causal connection from initial hack wound.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that intervening efficient cause; vehicular accident breaks causal connection from initial hack wound.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Intervening efficient cause; vehicular accident breaks causal connection from initial hack wound.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 70: *People v. Albuquerque*

Citation: 59 Phil. 150 (1933) | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Praeter intentionem (Art. 13[3]); whipping knife causing fatal blow to neck due to partial arm paralysis.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Praeter intentionem (Art. 13[3]); whipping knife causing fatal blow to neck due to partial arm paralysis' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Praeter intentionem (Art. 13[3]); whipping knife causing fatal blow to neck due to partial arm paralysis.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that praeter intentionem (art. 13[3]); whipping knife causing fatal blow to neck due to partial arm paralysis.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Praeter intentionem (Art. 13[3]); whipping knife causing fatal blow to neck due to partial arm paralysis.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 71: Yadao v. People

Citation: G.R. No. 150917, 27 September 2006 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: During a fistfight outside a dance hall, Yadao struck the victim once with his fist. The victim fell backward, hitting his head against a concrete pavement, causing a skull fracture and intracranial hemorrhage resulting in death.

Issue: Is the accused guilty of Homicide with the mitigating circumstance of praeter intentionem under Article 13(3)?

- **[A] ANSWER:** **YES. The accused is GUILTY OF HOMICIDE with the mitigating circumstance of lack of intent to commit so grave a wrong.**
- **[L] LEGAL BASIS:** Articles 4(1) and 13(3), Revised Penal Code.
- **[A] APPLICATION:** The fist blow was the proximate cause of the fall and the fatal skull fracture on the concrete. Under Art. 4(1), the accused is liable for homicide. However, delivering a single fist blow without a weapon clearly demonstrates that the accused did not intend the death of the victim. The mitigating circumstance under Art. 13(3) must be credited.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Homicide AFFIRMED with mitigating circumstance under Art. 13(3).
 > **Doctrine:** An unarmed blow that causes the victim to fall fatally onto a hard surface constitutes Homicide under Art. 4(1), mitigated by praeter intentionem under Art. 13(3).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 72: People v. Adriano

Citation: G.R. No. 205228, 15 July 2015 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Aberratio ictus (mistake in the blow); stray bullet killing unintended bystander constitutes complex crime under Art. 48.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Aberratio ictus (mistake in the blow); stray bullet killing unintended bystander constitutes complex crime under Art. 48' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Aberratio ictus (mistake in the blow); stray bullet killing unintended bystander constitutes complex crime under Art. 48.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that aberratio ictus (mistake in the blow); stray bullet killing unintended bystander constitutes complex crime under art. 48.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Aberratio ictus (mistake in the blow); stray bullet killing unintended bystander constitutes complex crime under Art. 48.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 73: *People v. Bendecio*

Citation: G.R. No. 235016, 8 September 2020 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Aberratio ictus; treachery qualifying the unintended killing of innocent third party.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Aberratio ictus; treachery qualifying the unintended killing of innocent third party' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Aberratio ictus; treachery qualifying the unintended killing of innocent third party.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that aberratio ictus; treachery qualifying the unintended killing of innocent third party.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Aberratio ictus; treachery qualifying the unintended killing of innocent third party.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 74: *People v. Gemoya*

Citation: G.R. No. 132633, 4 October 2000 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Aberratio ictus; complex crime of murder with attempted murder for stray shot.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Aberratio ictus; complex crime of murder with attempted murder for stray shot' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that *Aberratio ictus*; complex crime of murder with attempted murder for stray shot.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: *Praeter Intentionem*, *Aberratio Ictus*, Error in Personae, Impossible Crimes. The Court applied the established rule that *aberratio ictus*; complex crime of murder with attempted murder for stray shot.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: *Aberratio ictus*; complex crime of murder with attempted murder for stray shot.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, *Dolo/Culpa*, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 75: *People v. Guillen*

Citation: G.R. No. L-1477, 18 January 1950 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: *Praeter Intentionem*, *Aberratio Ictus*, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: *Aberratio ictus*; throwing grenade at President Roxas killing bystander constitutes complex crime of murder and attempted murder.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Aberratio ictus; throwing grenade at President Roxas killing bystander constitutes complex crime of murder and attempted murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that *Aberratio ictus*; throwing grenade at President Roxas killing bystander constitutes complex crime of murder and attempted murder.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: *Praeter Intentionem*, *Aberratio Ictus*, Error in Personae, Impossible Crimes. The Court applied the established rule that *aberratio ictus*; throwing grenade at president roxas killing bystander constitutes complex crime of murder and attempted murder.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: *Aberratio ictus*; throwing grenade at President Roxas killing bystander constitutes complex crime of murder and attempted murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, *Dolo/Culpa*, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 76: *People v. Sabalones*

Citation: G.R. No. 123485, 31 August 1998 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Error in personae (mistake in identity); mistaking victims for enemies does not extinguish liability for murder.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Error in personae (mistake in identity); mistaking victims for enemies does not extinguish liability for murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Error in personae (mistake in identity); mistaking victims for enemies does not extinguish liability for murder.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that error in personae (mistake in identity); mistaking victims for enemies does not extinguish liability for murder.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Error in personae (mistake in identity); mistaking victims for enemies does not extinguish liability for murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 77: *People v. Hilario*

Citation: G.R. No. 128083, 16 March 2001 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Error in personae; transferring intent to innocent victim.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Error in personae; transferring intent to innocent victim' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Error in personae; transferring intent to innocent victim.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that error in personae; transferring intent to innocent victim.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Error in personae; transferring intent to innocent victim.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 78: *People v. Balmores*

Citation: 85 Phil. 493 (1950) | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: In this landmark controversy involving Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 4, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Impossible crime; altering non-winning sweepstakes ticket with obvious eraser marks constitutes impossible crime of estafa.

Issue: Did the Supreme Court err in applying Art. 4, RPC to the accused, and should the established rule that 'Impossible crime; altering non-winning sweepstakes ticket with obvious eraser marks constitutes impossible crime of estafa' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 4, RPC, ruling that Impossible crime; altering non-winning sweepstakes ticket with obvious eraser marks constitutes impossible crime of estafa.
- **[L] LEGAL BASIS:** Art. 4, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes. The Court applied the established rule that impossible crime; altering non-winning sweepstakes ticket with obvious eraser marks constitutes impossible crime of estafa.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Impossible crime; altering non-winning sweepstakes ticket with obvious eraser marks constitutes impossible crime of estafa.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 79: *Intod v. Court of Appeals*

Citation: 215 SCRA 52 (1992) | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: Intod and three armed companions went to Bernardina Palangpangan's house with the intent to kill her. Knowing her usual bedroom location, they peppered the room with gunfire. Unknown to them, Bernardina was sleeping in another city that night; the room was completely empty.

Issue: Is the accused guilty of Attempted Murder or an Impossible Crime under Article 4, Paragraph 2 of the RPC?

- **[A] ANSWER:** **The accused is GUILTY OF AN IMPOSSIBLE CRIME under Article 4, Paragraph 2 in relation to Article 59 of the RPC.**
- **[L] LEGAL BASIS:** Article 4, Paragraph 2 and Article 59, Revised Penal Code; Distinction between Legal and Physical/Factual Impossibility.
- **[A] APPLICATION:** All elements of an impossible crime are present: (1) The act would be an offense against persons (Murder); (2) Assailants had homicidal intent; (3) Accomplishment was inherently impossible due to

factual impossibility (the target was absent from the room); and (4) The act did not constitute any other completed felony. Under the Positivist school of the RPC, the actor is punished for his subjective social dangerousness.

- **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED from Attempted Murder to Impossible Crime; sentenced to 6 months of arresto mayor.
 > ****Doctrine:**** Firing at an empty bedroom where the target is absent constitutes an Impossible Crime due to factual/physical impossibility under Article 4(2) of the RPC.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 80: Jacinto v. People

Citation: G.R. No. 162540, 13 July 2009 | Topic: Criminal Liability: Praeter Intentionem, Aberratio Ictus, Error in Personae, Impossible Crimes

Facts: Jacinto, a collector, received a customer's check for ₱10,000 payable to her employer, replaced it with a bounced personal check, and deposited the customer's check into her relative's bank account. However, the customer's check was subsequently dishonored for insufficient funds. The trial court convicted her of Qualified Theft.

Issue: Is the unauthorized appropriation of a worthless/dishonored check Qualified Theft or an Impossible Crime under Article 4(2) of the RPC?

- **[A] ANSWER:** ****The accused is GUILTY OF AN IMPOSSIBLE CRIME under Article 4(2) in relation to Article 59 of the RPC.****
- **[L] LEGAL BASIS:** Article 4, Paragraph 2 and Article 59, Revised Penal Code; Legal/Factual Impossibility in Crimes Against Property.
- **[A] APPLICATION:** Theft requires the unlawful taking of personal property belonging to another with value. Because the check was completely unfunded and dishonored upon presentment, no monetary gain or property value was or could ever be realized. The felony of theft against property was legally and factually impossible of accomplishment. Jacinto is liable for an impossible crime.
- **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED from Qualified Theft to Impossible Crime; sentenced to 6 months of arresto mayor.
 > ****Doctrine:**** The unlawful misappropriation of a worthless, dishonored check constitutes an Impossible Crime under Article 4(2) because the accomplishment of theft is inherently impossible.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 4, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part II: Felonies, Dolo/Culpa, Mistake of Fact, Proximate Cause & Impossible Crimes (Articles 3–5 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Statutory Anchor: Governing Provision(s): Arts. 6, 7, 50–57, RPC • Total Cases: 23

CASE 81: United States v. Eduave

Citation: 36 Phil. 209 (1917) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Subjective phase vs. objective phase in attempted and frustrated felonies.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Subjective phase vs. objective phase in attempted and frustrated felonies' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Subjective phase vs. objective phase in attempted and frustrated felonies.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that subjective phase vs. objective phase in attempted and frustrated felonies.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Subjective phase vs. objective phase in attempted and frustrated felonies.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 82: *People v. Enriquez*

Citation: 281 SCRA 103 (1997) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Attempted murder; overt acts and subjective phase analysis.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Attempted murder; overt acts and subjective phase analysis' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Attempted murder; overt acts and subjective phase analysis.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that attempted murder; overt acts and subjective phase analysis.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Attempted murder; overt acts and subjective phase analysis.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 83: *People v. Listerio*

Citation: 335 SCRA 40 (2000) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Stages of execution in conspiracy and multiple wounds inflicted.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Stages of execution in conspiracy and multiple wounds inflicted' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Stages of execution in conspiracy and multiple wounds inflicted.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that stages of execution in conspiracy and multiple wounds inflicted.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Stages of execution in conspiracy and multiple wounds inflicted.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 84: *People v. Erinia*

Citation: 50 Phil. 998 (1927) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Attempted rape; touching private parts without overt act of penile penetration.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Attempted rape; touching private parts without overt act of penile penetration' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Attempted rape; touching private parts without overt act of penile penetration.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that attempted rape; touching private parts without overt act of penile penetration.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Attempted rape; touching private parts without overt act of penile penetration.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 85: *People v. Hernandez*

Citation: 49 Phil. 980 (1925) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Frustrated rape doctrine vs. consummated rape under historical jurisprudence.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Frustrated rape doctrine vs. consummated rape under historical jurisprudence' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Frustrated rape doctrine vs. consummated rape under historical jurisprudence.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that frustrated rape doctrine vs. consummated rape under historical jurisprudence.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Frustrated rape doctrine vs. consummated rape under historical jurisprudence.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 86: *People v. Orita*

Citation: 184 SCRA 105 (1990) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Consummated rape; entry of the labia / slight penetration of female pudenda consummates rape.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Consummated rape; entry of the labia / slight penetration of female pudenda consummates rape' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Consummated rape; entry of the labia / slight penetration of female pudenda consummates rape.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that consummated rape; entry of the labia / slight penetration of female pudenda consummates rape.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Consummated rape; entry of the labia / slight penetration of female pudenda consummates rape.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 87: *People v. Campuhan*

Citation: 329 SCRA 270 (2000) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Attempted rape; lack of physical contact or penetration of the female pudenda.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Attempted rape; lack of physical contact or penetration of the female pudenda' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Attempted rape; lack of physical contact or penetration of the female pudenda.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that attempted rape; lack of physical contact or penetration of the female pudenda.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Attempted rape; lack of physical contact or penetration of the female pudenda.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 88: *People vs. Agao*

Citation: G.R. No. 248049, 4 October 2022 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Rape consummation standard; credibility of child victim testimony.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Rape consummation standard; credibility of child victim testimony' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Rape consummation standard; credibility of child victim testimony.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that rape consummation standard; credibility of child victim testimony.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Rape consummation standard; credibility of child victim testimony.

- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 89: Cruz v. People

Citation: G.R. No. 166441, 8 October 2014 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: Cruz forced his female employee into a motel room, pinned her to the bed, removed her underwear, and unzipped his pants. The victim fought back fiercely, managed to push him away, and bolted out the door before any genital contact.

Issue: What stage of execution of rape was committed?

- **[A] ANSWER:** **The crime committed is ATTEMPTED RAPE.**
- **[L] LEGAL BASIS:** Article 6, Par. 3 in rel. to Article 266-A, Revised Penal Code.
- **[A] APPLICATION:** The accused commenced the felony directly by overt acts of violence and unclogging resistance, with intent to rape. However, the felony was not produced due to the victim's successful escape—a cause other than his own spontaneous desistance.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Attempted Rape AFFIRMED.
> **Doctrine:** Forcibly undressing a victim with intent to rape, interrupted before genital contact by the victim's escape, constitutes Attempted Rape.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 90: Lutap v. People

Citation: G.R. No. 204061, 5 February 2018 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: The accused entered a sleeping girl's room, climbed on top of her, inserted his finger into her genitalia, and attempted penile penetration before she woke up screaming and family members rushed in.

Issue: What crimes were committed by the acts of digital insertion and attempted penile assault?

- **[A] ANSWER:** **Consummated Rape by Sexual Assault (Art. 266-A, Par. 2) and Attempted Rape by Carnal Knowledge.**
- **[L] LEGAL BASIS:** Article 266-A, Paragraphs 1 and 2, Revised Penal Code.
- **[A] APPLICATION:** Digital insertion into the genitalia consummates Rape by Sexual Assault under Paragraph 2 of Article 266-A. The subsequent attempt to achieve penile intercourse constituted Attempted Rape.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Rape by Sexual Assault AFFIRMED.
> **Doctrine:** Digital penetration of the genitalia consummates Rape by Sexual Assault under Art. 266-A(2) of the RPC.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 91: United States v. Adiao

Citation: 38 Phil. 754 (1918) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6,

7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Theft is consummated once thief obtains physical custody and control over the thing stolen.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Theft is consummated once thief obtains physical custody and control over the thing stolen' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Theft is consummated once thief obtains physical custody and control over the thing stolen.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that theft is consummated once thief obtains physical custody and control over the thing stolen.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Theft is consummated once thief obtains physical custody and control over the thing stolen.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 92: *People v. Dino*

Citation: 45 O.G. 3446 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Historical view on frustrated theft when stolen goods intercepted at checkpoint (overruled by Valenzuela).

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Historical view on frustrated theft when stolen goods intercepted at checkpoint (overruled by Valenzuela)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Historical view on frustrated theft when stolen goods intercepted at checkpoint (overruled by Valenzuela).
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that historical view on frustrated theft when stolen goods intercepted at checkpoint (overruled by Valenzuela).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Historical view on frustrated theft when stolen goods intercepted at checkpoint (overruled by Valenzuela).
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 93: Aristotel Valenzuela v. People

Citation: G.R. No. 160188, 21 June 2007 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: Valenzuela hauled cases of Tide detergent from a Super Sales Club warehouse, loaded them onto a pushcart, and transferred them to a waiting taxi outside. A security guard spotted him and arrested him before the taxi could leave the parking lot.

Issue: Can a person be convicted of Frustrated Theft under Philippine law?

- **[A] ANSWER:** **NO. In Philippine Criminal Law, THERE IS NO CRIME OF FRUSTRATED THEFT; the crime is either Attempted or CONSUMMATED THEFT.**
- **[L] LEGAL BASIS:** Articles 6 and 308, Revised Penal Code; Exhaustive En Banc Review of Theft Doctrines.
- **[A] APPLICATION:** The definition of theft under Article 308 requires only: (1) Taking of personal property; (2) Belonging to another; (3) With intent to gain; (4) Without consent; and (5) Without violence or intimidation. The moment the unlawful taking (apoderamiento) is completed and the thief obtains physical control over the thing, the theft is fully consummated. Freedom of disposition is not an element of theft. If taking is interrupted before obtaining control, it is Attempted; once control is obtained, it is Consummated. Frustrated theft is a legal impossibility.
- **[C] CONCLUSION & DOCTRINE:** Conviction for CONSUMMATED THEFT AFFIRMED.
> ****Doctrine:**** The Landmark Valenzuela Doctrine: Under Article 308 of the Revised Penal Code, there is NO crime of Frustrated Theft. Theft is either Attempted (if unlawful taking is interrupted before obtaining possession) or Consummated (the moment physical dominion is obtained).
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 94: People v. Lamahang

Citation: 61 Phil. 703 (1935) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Attempted robbery vs. trespass; breaking wall without unequivocal overt act showing intent to rob is attempted trespass.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Attempted robbery vs. trespass; breaking wall without unequivocal overt act showing intent to rob is attempted trespass' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Attempted robbery vs. trespass; breaking wall without unequivocal overt act showing intent to rob is attempted trespass.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that attempted robbery vs. trespass; breaking wall without unequivocal overt act showing intent to rob is attempted trespass.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Attempted robbery vs. trespass; breaking wall without unequivocal overt act showing intent to rob is attempted trespass.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 95: *People v. Salvilla*

Citation: 184 SCRA 671 (1990) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Robbery with serious physical injuries; control over money bag consummates robbery.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Robbery with serious physical injuries; control over money bag consummates robbery' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Robbery with serious physical injuries; control over money bag consummates robbery.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that robbery with serious physical injuries; control over money bag consummates robbery.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Robbery with serious physical injuries; control over money bag consummates robbery.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 96: *People v. Bulalayao*

Citation: G.R. No. 103497, 23 February 1994 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Attempted robbery with homicide and direct overt acts.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Attempted robbery with homicide and direct overt acts' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Attempted robbery with homicide and direct overt acts.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that attempted robbery with homicide and direct overt acts.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Attempted robbery with homicide and direct overt acts.

- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 97: *People v. Borinaga*

Citation: 55 Phil. 433 (1930) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Frustrated murder; striking knife at back intercepted by wooden chair constitutes frustrated murder.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Frustrated murder; striking knife at back intercepted by wooden chair constitutes frustrated murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Frustrated murder; striking knife at back intercepted by wooden chair constitutes frustrated murder.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that frustrated murder; striking knife at back intercepted by wooden chair constitutes frustrated murder.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Frustrated murder; striking knife at back intercepted by wooden chair constitutes frustrated murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 98: *People v. Sy Pio*

Citation: 94 Phil. 885 (1954) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Frustrated murder vs. attempted murder; non-fatal wound without hitting vital organ is attempted murder.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Frustrated murder vs. attempted murder; non-fatal wound without hitting vital organ is attempted murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Frustrated murder vs. attempted murder; non-fatal wound without hitting vital organ is attempted murder.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that frustrated murder vs. attempted murder; non-fatal wound without hitting vital organ is attempted murder.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Frustrated murder vs. attempted murder; non-fatal wound without hitting vital organ is attempted murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 99: People v. Trinidad

Citation: 169 SCRA 51 (1989) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Attempted murder; intent to kill and nature of wounds inflicted.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Attempted murder; intent to kill and nature of wounds inflicted' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Attempted murder; intent to kill and nature of wounds inflicted.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that attempted murder; intent to kill and nature of wounds inflicted.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Attempted murder; intent to kill and nature of wounds inflicted.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 100: People v. Ravelo

Citation: 202 SCRA 655 (1991) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Frustrated homicide; performing all acts of execution where victim survived due to timely medical intervention.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Frustrated homicide; performing all acts of execution where victim survived due to timely medical intervention' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Frustrated homicide; performing all acts of execution where victim survived due to timely medical intervention.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that frustrated homicide; performing all acts of execution where victim survived due to timely medical intervention.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Frustrated homicide; performing all acts of execution where victim survived due to timely medical intervention.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 101: People v. Kalalo

Citation: 59 Phil. 715 (1934) | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: In this landmark controversy involving Stages of Execution (Attempted, Frustrated, Consummated), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 6, 7, 50–57, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Attempted vs. frustrated homicide; firing multiple gunshots without inflicting mortal injury.

Issue: Did the Supreme Court err in applying Arts. 6, 7, 50–57, RPC to the accused, and should the established rule that 'Attempted vs. frustrated homicide; firing multiple gunshots without inflicting mortal injury' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 6, 7, 50–57, RPC, ruling that Attempted vs. frustrated homicide; firing multiple gunshots without inflicting mortal injury.
- **[L] LEGAL BASIS:** Arts. 6, 7, 50–57, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Stages of Execution (Attempted, Frustrated, Consummated). The Court applied the established rule that attempted vs. frustrated homicide; firing multiple gunshots without inflicting mortal injury.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Attempted vs. frustrated homicide; firing multiple gunshots without inflicting mortal injury.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 102: Guzman, Jr. v. People

Citation: G.R. No. 178512, 26 November 2014 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: Guzman struck the victim on the head with a heavy lead pipe. The victim sustained a linear skull fracture. The attending physician testified that without prompt medical care, the skull fracture would have caused fatal intracranial bleeding.

Issue: Is the crime Frustrated Homicide or Attempted Homicide?

- **[A] ANSWER:** **The crime is FRUSTRATED HOMICIDE.**
- **[L] LEGAL BASIS:** Article 6, Paragraph 2 and Article 249, Revised Penal Code.

- **[A] APPLICATION:** The assailant performed all acts of execution by striking a mortal blow to the head. The failure of the blow to produce death was prevented entirely by timely medical treatment. The crime is Frustrated Homicide.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Frustrated Homicide AFFIRMED.
> ****Doctrine:**** Inflicting a mortal skull fracture that would have caused death without medical intervention constitutes Frustrated Homicide.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 103: Etino v. People

Citation: G.R. No. 206632, 14 February 2018 | Topic: Stages of Execution (Attempted, Frustrated, Consummated)

Facts: Etino hacked the victim with a bolo during an altercation, hitting his back. The medical officer certified that the wound was superficial, did not penetrate any vital organs, and required only 10 days of medical attention.

Issue: Is the offense Frustrated Homicide or Attempted Homicide?

- **[A] ANSWER:** ****The offense is ATTEMPTED HOMICIDE.****
- **[L] LEGAL BASIS:** Article 6, Paragraph 3 and Article 249, Revised Penal Code.
- **[A] APPLICATION:** Under the Mortal Wound Test, when the wound inflicted is non-mortal, the perpetrator cannot be convicted of Frustrated Homicide. Since the wound required only 10 days to heal and did not endanger life, the crime is Attempted Homicide.
- **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED to Attempted Homicide.
> ****Doctrine:**** Where the hacking wound is superficial and non-mortal, the offense is Attempted Homicide, not Frustrated Homicide.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 6, 7, 50–57, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Conspiracy, Proposal, and Multiple Offenders

Statutory Anchor: Governing Provision(s): Arts. 8, 14(9-10), 62(5), 160, RPC • Total Cases: 12

CASE 104: People v. Peralta

Citation: 25 SCRA 759 (1968) | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Conspiracy in prison riot (Oxo vs. Sigue-Sigue); collective criminal responsibility of conspirators.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Conspiracy in prison riot (Oxo vs. Sigue-Sigue); collective criminal responsibility of conspirators' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Conspiracy in prison riot (Oxo vs. Sigue-Sigue); collective criminal responsibility of conspirators.

- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that conspiracy in prison riot (oxo vs. sigue-sigue); collective criminal responsibility of conspirators.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Conspiracy in prison riot (Oxo vs. Sigue-Sigue); collective criminal responsibility of conspirators.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 105: United States v. Bautista

Citation: 6 Phil. 581 (1906) | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Conspiracy to overthrow government; mere agreement without overt execution.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Conspiracy to overthrow government; mere agreement without overt execution' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Conspiracy to overthrow government; mere agreement without overt execution.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that conspiracy to overthrow government; mere agreement without overt execution.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Conspiracy to overthrow government; mere agreement without overt execution.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 106: Quidet v. People

Citation: G.R. No. 170289, 8 April 2010 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: During a sudden brawl, Quidet stood nearby holding a piece of wood while his companion unexpectedly stabbed the victim. There was no prior plan and no concerted coordination between them.

Issue: Can conspiracy be inferred from mere companionship and passive presence during a spontaneous stabbing?

- **[A] ANSWER:** **NO. Conspiracy must be proved beyond reasonable doubt; Quidet is NOT liable for the stabbing.**
- **[L] LEGAL BASIS:** Article 8 and Article 17, Revised Penal Code.

- **[A] APPLICATION:** To establish implied conspiracy, the prosecution must prove that the accused performed acts that clearly demonstrate a common criminal purpose and synchronized execution. Mere presence at the scene or companionship with the assailant does not establish conspiracy.
- **[C] CONCLUSION & DOCTRINE:** Quidet ACQUITTED of Homicide.
> ****Doctrine:**** Conspiracy must be established with the same degree of moral certainty as the crime itself; mere presence and companionship do not establish conspiracy.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 107: *People v. Belmonte*

Citation: G.R. No. 220889, 5 July 2017 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Implied conspiracy shown by concerted, synchronized actions of co-accused.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Implied conspiracy shown by concerted, synchronized actions of co-accused' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Implied conspiracy shown by concerted, synchronized actions of co-accused.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that implied conspiracy shown by concerted, synchronized actions of co-accused.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Implied conspiracy shown by concerted, synchronized actions of co-accused.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 108: *People v. Lago*

Citation: G.R. No. 121272, 6 June 2001 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Direct participation and individual liability in the absence of proven conspiracy.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Direct participation and individual liability in the absence of proven conspiracy' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Direct participation and individual liability in the absence of proven conspiracy.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that direct participation and individual liability in the absence of proven conspiracy.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Direct participation and individual liability in the absence of proven conspiracy.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 109: People v. Real

Citation: G.R. No. 93436, 24 March 1995 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Recidivism (Art. 14[9]); essential requisites and proof of prior final conviction.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Recidivism (Art. 14[9]); essential requisites and proof of prior final conviction' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Recidivism (Art. 14[9]); essential requisites and proof of prior final conviction.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that recidivism (art. 14[9]); essential requisites and proof of prior final conviction.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Recidivism (Art. 14[9]); essential requisites and proof of prior final conviction.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 110: People v. Ibasco

Citation: G.R. No. L-4009, 19 October 1951 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Recidivism under same Title of the Revised Penal Code.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Recidivism under same Title of the Revised Penal Code' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Recidivism under same Title of the Revised Penal Code.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that recidivism under same title of the revised penal code.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Recidivism under same Title of the Revised Penal Code.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 111: *People v. Cajara*

Citation: G.R. No. 122498, 27 September 2000 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Reiteracion (Art. 14[10]); requirement that accused previously served penalty for offenses.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Reiteracion (Art. 14[10]); requirement that accused previously served penalty for offenses' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Reiteracion (Art. 14[10]); requirement that accused previously served penalty for offenses.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that reiteracion (art. 14[10]); requirement that accused previously served penalty for offenses.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Reiteracion (Art. 14[10]); requirement that accused previously served penalty for offenses.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 112: *People v. Masonson*

Citation: G.R. No. L-44527, 31 March 1936 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Habitual Delinquency (Art. 62[5]); requirement of alleging specific dates of prior convictions and releases.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Habitual Delinquency (Art. 62[5]); requirement of alleging specific dates of prior convictions and releases' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Habitual Delinquency (Art. 62[5]); requirement of alleging specific dates of prior convictions and releases.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that habitual delinquency (art. 62[5]); requirement of alleging specific dates of prior convictions and releases.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Habitual Delinquency (Art. 62[5]); requirement of alleging specific dates of prior convictions and releases.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 113: *People v. Tolentino*

Citation: G.R. No. L-48740, 5 August 1942 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Habitual Delinquency; computation of 10-year statutory window for theft and robbery.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Habitual Delinquency; computation of 10-year statutory window for theft and robbery' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Habitual Delinquency; computation of 10-year statutory window for theft and robbery.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that habitual delinquency; computation of 10-year statutory window for theft and robbery.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Habitual Delinquency; computation of 10-year statutory window for theft and robbery.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 114: *People v. Layson*

Citation: G.R. No. L-25177, 31 October 1969 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Quasi-Recidivism (Art. 160); prisoner killing inmate while serving sentence punished with maximum penalty.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Quasi-Recidivism (Art. 160); prisoner killing inmate while serving sentence punished with maximum penalty' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Quasi-Recidivism (Art. 160); prisoner killing inmate while serving sentence punished with maximum penalty.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that quasi-recidivism (art. 160); prisoner killing inmate while serving sentence punished with maximum penalty.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Quasi-Recidivism (Art. 160); prisoner killing inmate while serving sentence punished with maximum penalty.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 115: *People v. Peralta*

Citation: G.R. No. L-19069, 29 October 1968 | Topic: Conspiracy, Proposal, and Multiple Offenders

Facts: In this landmark controversy involving Conspiracy, Proposal, and Multiple Offenders, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 8, 14(9-10), 62(5), 160, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Quasi-Recidivism cannot be offset by any ordinary mitigating circumstance.

Issue: Did the Supreme Court err in applying Arts. 8, 14(9-10), 62(5), 160, RPC to the accused, and should the established rule that 'Quasi-Recidivism cannot be offset by any ordinary mitigating circumstance' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 8, 14(9-10), 62(5), 160, RPC, ruling that Quasi-Recidivism cannot be offset by any ordinary mitigating circumstance.
- **[L] LEGAL BASIS:** Arts. 8, 14(9-10), 62(5), 160, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Conspiracy, Proposal, and Multiple Offenders. The Court applied the established rule that quasi-recidivism cannot be offset by any ordinary mitigating circumstance.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Quasi-Recidivism cannot be offset by any ordinary mitigating circumstance.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 8, 14(9-10), 62(5), 160, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part III: Stages of Execution, Light Felonies, Conspiracy & Plurality (Articles 6–10 RPC), illustrating the practical judicial application of statutory elements and defenses.

PART: III. CIRCUMSTANCES AFFECTING CRIMINAL LIABILITY

Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Statutory Anchor: Governing Provision(s): Art. 11, RPC • Total Cases: 17

CASE 116: People v. Genosa

Citation: G.R. No. 135981, 15 January 2004 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Battered Woman Syndrome as an analog of self-defense; acute battered state replaces immediate unlawful aggression.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Battered Woman Syndrome as an analog of self-defense; acute battered state replaces immediate unlawful aggression' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Battered Woman Syndrome as an analog of self-defense; acute battered state replaces immediate unlawful aggression.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that Battered Woman Syndrome as an analog of self-defense; acute battered state replaces immediate unlawful aggression.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Battered Woman Syndrome as an analog of self-defense; acute battered state replaces immediate unlawful aggression.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 117: People v. Dulin

Citation: G.R. No. 171284, 29 June 2015 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Self-defense; mutual combat negates claim of unlawful aggression.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Self-defense; mutual combat negates claim of unlawful aggression' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Self-defense; mutual combat negates claim of unlawful aggression.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that self-defense; mutual combat negates claim of unlawful aggression.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Self-defense; mutual combat negates claim of unlawful aggression.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 118: People v. Olarbe

Citation: G.R. No. 227421, 23 July 2018 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Self-defense & defense of stranger; unprovoked assault with firearm establishes immediate unlawful aggression.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Self-defense & defense of stranger; unprovoked assault with firearm establishes immediate unlawful aggression' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Self-defense & defense of stranger; unprovoked assault with firearm establishes immediate unlawful aggression.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that self-defense & defense of stranger; unprovoked assault with firearm establishes immediate unlawful aggression.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Self-defense & defense of stranger; unprovoked assault with firearm establishes immediate unlawful aggression.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 119: *Nacnac v. People*

Citation: G.R. No. 191913, 21 March 2012 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Self-defense by police officer; reasonable necessity of drawing firearm against drunk, unruly superior.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Self-defense by police officer; reasonable necessity of drawing firearm against drunk, unruly superior' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Self-defense by police officer; reasonable necessity of drawing firearm against drunk, unruly superior.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that self-defense by police officer; reasonable necessity of drawing firearm against drunk, unruly superior.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Self-defense by police officer; reasonable necessity of drawing firearm against drunk, unruly superior.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 120: *People v. Eduarte*

Citation: G.R. No. 176566, 16 April 2009 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Unlawful aggression must be actual, sudden, and imminent; mere threatening attitude not sufficient.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Unlawful aggression must be actual, sudden, and imminent; mere threatening attitude not sufficient' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Unlawful aggression must be actual, sudden, and imminent; mere threatening attitude not sufficient.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that unlawful aggression must be actual, sudden, and imminent; mere threatening attitude not sufficient.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Unlawful aggression must be actual, sudden, and imminent; mere threatening attitude not sufficient.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 121: *People v. Apolinar*

Citation: 38 O.G. 2870 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Defense of property; killing thief fleeing with stolen palay is not justified; life is superior to property.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Defense of property; killing thief fleeing with stolen palay is not justified; life is superior to property' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Defense of property; killing thief fleeing with stolen palay is not justified; life is superior to property.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that defense of property; killing thief fleeing with stolen palay is not justified; life is superior to property.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Defense of property; killing thief fleeing with stolen palay is not justified; life is superior to property.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 122: United States v. Bumanglag

Citation: 14 Phil. 644 (1909) | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: Bumanglag discovered a thief entering his granary to steal palay. Bumanglag struck the unarmed thief with a heavy club, fracturing his skull and killing him on the spot.

Issue: Is the killing of an unarmed thief inside a storehouse justified under defense of property?

- **[A] ANSWER:** **NO. The accused is GUILTY OF HOMICIDE with mitigating circumstance of incomplete defense.**
- **[L] LEGAL BASIS:** Article 11(1) and Article 13(1), Revised Penal Code.
- **[A] APPLICATION:** The thief was unarmed and sought only to take grain. There was no personal attack against Bumanglag. Striking a fatal skull-crushing blow exceeded all reasonable necessity.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Homicide AFFIRMED.
> ****Doctrine:**** Lethal force cannot be employed against an unarmed thief who poses no bodily threat to the property owner.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 123: People v. Narvaez

Citation: 121 SCRA 389 (1983) | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Defense of property; shooting fencing workers on disputed land qualifies for incomplete self-defense / property defense.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Defense of property; shooting fencing workers on disputed land qualifies for incomplete self-defense / property defense' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Defense of property; shooting fencing workers on disputed land qualifies for incomplete self-defense / property defense.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that defense of property; shooting fencing workers on disputed land qualifies for incomplete self-defense / property defense.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Defense of property; shooting fencing workers on disputed land qualifies for incomplete self-defense / property defense.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 124: United States v. Esmedia

Citation: 17 Phil. 260 (1910) | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Defense of relatives (Art. 11[2]); retaliatory killing after aggression has ceased cannot be justified.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Defense of relatives (Art. 11[2]); retaliatory killing after aggression has ceased cannot be justified' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Defense of relatives (Art. 11[2]); retaliatory killing after aggression has ceased cannot be justified.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that defense of relatives (art. 11[2]); retaliatory killing after aggression has ceased cannot be justified.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Defense of relatives (Art. 11[2]); retaliatory killing after aggression has ceased cannot be justified.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 125: People v. Toring

Citation: G.R. No. L-56358, 26 October 1990 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Defense of stranger (Art. 11[3]); requisites and lack of evil motive.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Defense of stranger (Art. 11[3]); requisites and lack of evil motive' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Defense of stranger (Art. 11[3]); requisites and lack of evil motive.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that defense of stranger (art. 11[3]); requisites and lack of evil motive.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Defense of stranger (Art. 11[3]); requisites and lack of evil motive.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 126: Masipequiña v. Court of Appeals

Citation: G.R. No. L-51206, 25 August 1989 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Defense of stranger; police officer shooting violent bolo-wielding mental patient assaulting patrolman.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Defense of stranger; police officer shooting violent bolo-wielding mental patient assaulting patrolman' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Defense of stranger; police officer shooting violent bolo-wielding mental patient assaulting patrolman.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that defense of stranger; police officer shooting violent bolo-wielding mental patient assaulting patrolman.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Defense of stranger; police officer shooting violent bolo-wielding mental patient assaulting patrolman.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 127: People v. Retubado

Citation: G.R. No. 124058, 10 December 2003 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: State of necessity (Art. 11[4]); injury caused must be strictly necessary to avoid greater evil.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'State of necessity (Art. 11[4]); injury caused must be strictly necessary to avoid greater evil' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that State of necessity (Art. 11[4]); injury caused must be strictly necessary to avoid greater evil.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that state of necessity (art. 11[4]); injury caused must be strictly necessary to avoid greater evil.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: State of necessity (Art. 11[4]); injury caused must be strictly necessary to avoid greater evil.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 128: Tan v. Standard Vacuum Oil Co.

Citation: 91 Phil. 672 (1952) | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: State of necessity; civil liability under Art. 101 borne by persons benefited by avoiding disaster.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'State of necessity; civil liability under Art. 101 borne by persons benefited by avoiding disaster' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that State of necessity; civil liability under Art. 101 borne by persons benefited by avoiding disaster.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that state of necessity; civil liability under art. 101 borne by persons benefited by avoiding disaster.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: State of necessity; civil liability under Art. 101 borne by persons benefited by avoiding disaster.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 129: People v. Delima

Citation: 46 Phil. 738 (1922) | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Fulfillment of duty (Art. 11[5]); policeman shooting escaped dangerous convict resisting recapture with bamboo spear.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Fulfillment of duty (Art. 11[5]); policeman shooting escaped dangerous convict resisting recapture with bamboo spear' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Fulfillment of duty (Art. 11[5]); policeman shooting escaped dangerous convict resisting recapture with bamboo spear.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that fulfillment of duty (art. 11[5]); policeman shooting escaped dangerous convict resisting recapture with bamboo spear.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Fulfillment of duty (Art. 11[5]); policeman shooting escaped dangerous convict resisting recapture with bamboo spear.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 130: *People v. Belbes*

Citation: 334 SCRA 610 (2000) | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Fulfillment of duty rejected where police officer fired assault rifle into unruly crowd without necessity.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Fulfillment of duty rejected where police officer fired assault rifle into unruly crowd without necessity' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Fulfillment of duty rejected where police officer fired assault rifle into unruly crowd without necessity.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The Court applied the established rule that fulfillment of duty rejected where police officer fired assault rifle into unruly crowd without necessity.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Fulfillment of duty rejected where police officer fired assault rifle into unruly crowd without necessity.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 131: Cabanlig v. Sandiganbayan

Citation: G.R. No. 148431, 28 July 2005 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: Police officers were transporting a dangerous robbery suspect in a police jeep. The suspect suddenly grabbed an officer's service firearm, engaged in a violent struggle for the weapon inside the moving vehicle, and attempted to jump out. Police Chief Cabanlig shot and killed the suspect.

Issue: Is the police chief justified under Fulfillment of Duty?

- **[A] ANSWER:** **YES. The police chief acted in lawful Fulfillment of Duty; Cabanlig is ACQUITTED.**
- **[L] LEGAL BASIS:** Article 11, Paragraph 5, Revised Penal Code.
- **[A] APPLICATION:** The suspect attempted to disarm an escorting officer and escape from moving custody. The emergency left no time for deliberation. Shooting the suspect was the necessary consequence of preventing the escape and safeguarding the lives of the police escorts.
- **[C] CONCLUSION & DOCTRINE:** Conviction REVERSED; Cabanlig ACQUITTED.
> ****Doctrine:**** Shooting a dangerous detainee who grabs an officer's firearm and attempts to escape from custody during transport is justified under Fulfillment of Duty.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 132: Tabuena v. Sandiganbayan

Citation: G.R. Nos. 103501-03, 17 February 1997 | Topic: Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty

Facts: In this landmark controversy involving Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 11, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Obedience to lawful order (Art. 11[6]); MIAA head acting under direct presidential memorandum.

Issue: Did the Supreme Court err in applying Art. 11, RPC to the accused, and should the established rule that 'Obedience to lawful order (Art. 11[6]); MIAA head acting under direct presidential memorandum' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 11, RPC, ruling that Obedience to lawful order (Art. 11[6]); MIAA head acting under direct presidential memorandum.
- **[L] LEGAL BASIS:** Art. 11, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Justifying Circumstances: Self-Defense, Defense of Relatives & Strangers, State of Necessity, Fulfillment of Duty. The

Court applied the established rule that obedience to lawful order (art. 11[6]); miaa head acting under direct presidential memorandum.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Obedience to lawful order (Art. 11[6]); MIAA head acting under direct presidential memorandum.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 11, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Statutory Anchor: Governing Provision(s): Art. 12, RPC; RA 9344; PD 603 • Total Cases: 30

CASE 133: People v. Bonoan

Citation: 64 Phil. 87 (1937) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity test (M'Naghten rule in PH); complete deprivation of intelligence at precise moment of crime.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity test (M'Naghten rule in PH); complete deprivation of intelligence at precise moment of crime' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity test (M'Naghten rule in PH); complete deprivation of intelligence at precise moment of crime.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity test (m'naghten rule in ph); complete deprivation of intelligence at precise moment of crime.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity test (M'Naghten rule in PH); complete deprivation of intelligence at precise moment of crime.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 134: People v. Ambal

Citation: 100 SCRA 325 (1980) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning

whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity defense rejected; schizophrenia and mental deficiency distinguished from total deprivation of reason.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity defense rejected; schizophrenia and mental deficiency distinguished from total deprivation of reason' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity defense rejected; schizophrenia and mental deficiency distinguished from total deprivation of reason.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity defense rejected; schizophrenia and mental deficiency distinguished from total deprivation of reason.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity defense rejected; schizophrenia and mental deficiency distinguished from total deprivation of reason.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 135: *People v. Puno*

Citation: 105 SCRA 151 (1981) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity must be proven by clear and convincing evidence; presumption of sanity.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity must be proven by clear and convincing evidence; presumption of sanity' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity must be proven by clear and convincing evidence; presumption of sanity.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity must be proven by clear and convincing evidence; presumption of sanity.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity must be proven by clear and convincing evidence; presumption of sanity.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 136: *People v. Dungo*

Citation: 199 SCRA 860 (1991) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity defense; evaluation of psychological testimony and lucidity of conduct.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity defense; evaluation of psychological testimony and lucidity of conduct' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity defense; evaluation of psychological testimony and lucidity of conduct.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity defense; evaluation of psychological testimony and lucidity of conduct.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity defense; evaluation of psychological testimony and lucidity of conduct.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 137: *People v. Yam-id*

Citation: 308 SCRA 651 (1999) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity burden of proof on defense; eccentric behavior does not amount to insanity.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity burden of proof on defense; eccentric behavior does not amount to insanity' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity burden of proof on defense; eccentric behavior does not amount to insanity.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity burden of proof on defense; eccentric behavior does not amount to insanity.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity burden of proof on defense; eccentric behavior does not amount to insanity.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 138: *People v. Valledor*

Citation: 383 SCRA 653 (2002) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity defense; state of mind immediately preceding and during murder.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity defense; state of mind immediately preceding and during murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity defense; state of mind immediately preceding and during murder.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity defense; state of mind immediately preceding and during murder.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity defense; state of mind immediately preceding and during murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 139: *People v. Belonio*

Citation: 429 SCRA 579 (2004) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity vs. epilepsy; lack of proof of epileptic seizure during the killing.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity vs. epilepsy; lack of proof of epileptic seizure during the killing' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity vs. epilepsy; lack of proof of epileptic seizure during the killing.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity vs. epilepsy; lack of proof of epileptic seizure during the killing.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity vs. epilepsy; lack of proof of epileptic seizure during the killing.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 140: *People v. Pantoja*

Citation: G.R. No. 223114, 29 November 2017 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity defense; expert psychiatric testimony evaluating mental state of accused.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity defense; expert psychiatric testimony evaluating mental state of accused' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity defense; expert psychiatric testimony evaluating mental state of accused.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity defense; expert psychiatric testimony evaluating mental state of accused.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity defense; expert psychiatric testimony evaluating mental state of accused.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 141: *People v. Roa*

Citation: G.R. No. 225599, 22 March 2017 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning

whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insanity; post-traumatic stress disorder and drug-induced psychosis.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insanity; post-traumatic stress disorder and drug-induced psychosis' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insanity; post-traumatic stress disorder and drug-induced psychosis.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insanity; post-traumatic stress disorder and drug-induced psychosis.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insanity; post-traumatic stress disorder and drug-induced psychosis.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 142: *People v. Buenaflor*

Citation: G.R. No. 93753, 15 July 1992 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Somnambulism / sleepwalking as exempting circumstance under absence of voluntariness.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Somnambulism / sleepwalking as exempting circumstance under absence of voluntariness' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Somnambulism / sleepwalking as exempting circumstance under absence of voluntariness.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that somnambulism / sleepwalking as exempting circumstance under absence of voluntariness.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Somnambulism / sleepwalking as exempting circumstance under absence of voluntariness.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 143: *People v. Nuñez*

Citation: G.R. Nos. 112429-30, 23 July 1997 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Hypnotism and altered states of consciousness evaluated under Art. 12.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Hypnotism and altered states of consciousness evaluated under Art. 12' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Hypnotism and altered states of consciousness evaluated under Art. 12.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that hypnotism and altered states of consciousness evaluated under art. 12.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Hypnotism and altered states of consciousness evaluated under Art. 12.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 144: *People v. Taneo*

Citation: 58 Phil. 255 (1933) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Somnambulism; dreaming of being attacked and stabbing wife while asleep is exempting.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Somnambulism; dreaming of being attacked and stabbing wife while asleep is exempting' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Somnambulism; dreaming of being attacked and stabbing wife while asleep is exempting.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that somnambulism; dreaming of being attacked and stabbing wife while asleep is exempting.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Somnambulism; dreaming of being attacked and stabbing wife while asleep is exempting.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 145: Guevarra v. Hon. Ignacio Almodovar

Citation: G.R. No. 75256, 26 January 1989 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: An 11-year-old child (under the old law) shot a playmate with an air rifle, causing fatal injuries. The juvenile court found he acted with discernment because he was an intelligent Grade 5 student.

Issue: What is the legal meaning of 'discernment' in juvenile criminal law, and how does it differ from intent?

- **[A] ANSWER:** ****Discernment is the mental capacity to UNDERSTAND THE MORAL CONSEQUENCES OF AN ACT (distinguishing right from wrong); it is distinct from mere criminal intent.****
- **[L] LEGAL BASIS:** Article 12, Paragraph 3, RPC; (Now governed by Republic Act No. 9344 / Juvenile Justice and Welfare Act).
- **[A] APPLICATION:** Intent is the resolve or determination to do an act. Discernment is the mental capacity to comprehend the moral difference between right and wrong and understand the legal and moral consequences of one's actions. (Under RA 9344, children 15 and below are now absolutely exempt, while those 15-18 are exempt unless proven to have acted with discernment).
- **[C] CONCLUSION & DOCTRINE:** Doctrinal definition of Discernment laid down.
> ****Doctrine:**** The Guevarra Landmark: Discernment is the cognitive capacity to distinguish right from wrong and appreciate the consequences of one's acts, distinct from mere intent.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 146: People v. Doqueña

Citation: 68 Phil. 580 (1939) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Discernment of minor shown by hiding weapon and fleeing scene after crime.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Discernment of minor shown by hiding weapon and fleeing scene after crime' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Discernment of minor shown by hiding weapon and fleeing scene after crime.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that discernment of minor shown by hiding weapon and fleeing scene after crime.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Discernment of minor shown by hiding weapon and fleeing scene after crime.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 147: *People v. Navarro*

Citation: 51 O.G. 4062 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Discernment proved by surrounding facts and conduct of minor offender.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Discernment proved by surrounding facts and conduct of minor offender' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Discernment proved by surrounding facts and conduct of minor offender.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that discernment proved by surrounding facts and conduct of minor offender.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Discernment proved by surrounding facts and conduct of minor offender.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 148: *Jose v. People*

Citation: 448 SCRA 116 (2005) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: Jose was convicted of Robbery. On appeal, he claimed minority based on an unauthenticated baptismal certificate, claiming he was 14 at the time of the crime.

Issue: What is the evidentiary standard to establish minority in criminal cases?

- **[A] ANSWER:** **Minority must be established by primary official records (Civil Registry Birth Certificate) or competent secondary evidence.**
- **[L] LEGAL BASIS:** Rule on Juveniles in Conflict with the Law; RA 9344.

- **[A] APPLICATION:** Under juvenile rules, minority is established by: (1) Certificate of Live Birth; (2) Baptismal certificate with corroboration; or (3) Official school/dental records. In case of doubt, age is resolved in favor of the child.
- **[C] CONCLUSION & DOCTRINE:** Case remanded for precise age determination.
> ****Doctrine:**** Age of minority must be properly proven by official birth certificates or competent secondary records; doubt is resolved in favor of the minor.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 149: *People v. Jacinto*

Citation: G.R. No. 182239, 16 March 2011 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Exemption of child in conflict with the law under RA 9344; mandatory suspension of sentence.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Exemption of child in conflict with the law under RA 9344; mandatory suspension of sentence' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Exemption of child in conflict with the law under RA 9344; mandatory suspension of sentence.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that exemption of child in conflict with the law under RA 9344; mandatory suspension of sentence.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Exemption of child in conflict with the law under RA 9344; mandatory suspension of sentence.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 150: *People v. Arpon*

Citation: G.R. No. 183563, 14 December 2011 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Proof of minority and application of RA 9344 benefits.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Proof of minority and application of RA 9344 benefits' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Proof of minority and application of RA 9344 benefits.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that proof of minority and application of RA 9344 benefits.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Proof of minority and application of RA 9344 benefits.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 151: Sierra v. People

Citation: G.R. No. 182941, 3 July 2009 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: Sierra was convicted of Homicide committed when he was 17 years old. While his appeal was pending before the Supreme Court, RA 9344 took effect.

Issue: Is the accused entitled to the beneficial provisions of RA 9344 on sentence suspension and diversion?

- **[A] ANSWER:** **YES. Beneficial juvenile justice legislation applies retroactively to all pending cases.**
- **[L] LEGAL BASIS:** Republic Act No. 9344; Article 22, Revised Penal Code.
- **[A] APPLICATION:** Statutory modifications favoring juvenile offenders operate retroactively. Sierra's penalty was adjusted and remanded for appropriate disposition in accordance with RA 9344.
- **[C] CONCLUSION & DOCTRINE:** Remanded for disposition under RA 9344.
> **Doctrine:** RA 9344 applies retroactively to all pending criminal prosecutions involving minors.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 152: People v. Bindoy

Citation: 56 Phil. 15 (1931) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accident (Art. 12[4]); pacifying dispute, accidental stabbing while pulling knife from scuffle is exempt.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Accident (Art. 12[4]); pacifying dispute, accidental stabbing while pulling knife from scuffle is exempt' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Accident (Art. 12[4]); pacifying dispute, accidental stabbing while pulling knife from scuffle is exempt.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that accident (art. 12[4]); pacifying dispute, accidental stabbing while pulling knife from scuffle is exempt.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accident (Art. 12[4]); pacifying dispute, accidental stabbing while pulling knife from scuffle is exempt.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 153: U.S. v. Tanedo

Citation: 15 Phil. 196 (1910) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accident; shooting wild chicken, bullet ricocheting and killing bystander is exempt from liability.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Accident; shooting wild chicken, bullet ricocheting and killing bystander is exempt from liability' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Accident; shooting wild chicken, bullet ricocheting and killing bystander is exempt from liability.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that accident; shooting wild chicken, bullet ricocheting and killing bystander is exempt from liability.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accident; shooting wild chicken, bullet ricocheting and killing bystander is exempt from liability.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 154: Pomoy v. People

Citation: 439 SCRA 439 (2004) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: Police Officer Pomoy was escorting a detainee inside a police precinct. The detainee suddenly lunged and grabbed Pomoy's service revolver. During the violent grappling for the weapon, the gun accidentally discharged, killing the detainee.

Issue: Is the police officer exempt under Article 12, Paragraph 4 (Accident)?

- **[A] ANSWER:** **YES. The officer was performing a lawful duty with due care; the discharge was an exempting ACCIDENT.**
- **[L] LEGAL BASIS:** Article 12, Paragraph 4, Revised Penal Code.
- **[A] APPLICATION:** All requisites of accident were met: (1) Lawful act (escorting a detainee); (2) Due care; (3) Accidental discharge resulting from the detainee's violent struggle to grab the gun; (4) Total absence of felonious intent or negligence on the part of the officer.
- **[C] CONCLUSION & DOCTRINE:** Conviction REVERSED; Pomoy ACQUITTED.
> **Doctrine:** The accidental discharge of a firearm during a violent struggle initiated by a detainee grabbing the officer's weapon is an exempting accident under Art. 12(4).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 155: *People v. Macal*

Citation: G.R. No. 211062, 13 January 2016 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accident defense rejected where accused unlawfully drew knife during marital altercation.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Accident defense rejected where accused unlawfully drew knife during marital altercation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Accident defense rejected where accused unlawfully drew knife during marital altercation.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that accident defense rejected where accused unlawfully drew knife during marital altercation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accident defense rejected where accused unlawfully drew knife during marital altercation.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 156: *People v. Delector*

Citation: G.R. No. 200026, 4 October 2017 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accident defense requires total absence of fault and negligence.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Accident defense requires total absence of fault and negligence' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Accident defense requires total absence of fault and negligence.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that accident defense requires total absence of fault and negligence.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accident defense requires total absence of fault and negligence.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 157: *United States v. Caballeros*

Citation: 4 Phil. 350 (1905) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Irresistible force (Art. 12[5]); compelled by armed insurgents under threat of death to bury victim.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Irresistible force (Art. 12[5]); compelled by armed insurgents under threat of death to bury victim' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Irresistible force (Art. 12[5]); compelled by armed insurgents under threat of death to bury victim.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that irresistible force (art. 12[5]); compelled by armed insurgents under threat of death to bury victim.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Irresistible force (Art. 12[5]); compelled by armed insurgents under threat of death to bury victim.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 158: United States v. Exaltacion

Citation: 3 Phil. 339 (1904) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: Insurrectionists captured local town officials and forced them under threat of torture and death to sign an oath of allegiance to the revolutionary government. The officials signed solely to save their lives.

Issue: Are the officials guilty of Rebellion/Treason for signing the oath?

- **[A] ANSWER:** **NO. The signing was compelled by irresistible force and uncontrollable fear; the officials are ACQUITTED.**
- **[L] LEGAL BASIS:** Article 12, Paragraphs 5 and 6, Revised Penal Code.
- **[A] APPLICATION:** Criminal intent was absent. The signatures were obtained through physical duress and imminent threat of execution. The act was non-volitional and exempt.
- **[C] CONCLUSION & DOCTRINE:** Officials ACQUITTED.
> **Doctrine:** Acts performed under immediate duress and threat of torture/death are exempt under Art. 12(5) and (6).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 159: People v. Anod

Citation: G.R. No. 186420, 25 August 2009 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Uncontrollable fear; fear must be of real, imminent, and equal or greater evil.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Uncontrollable fear; fear must be of real, imminent, and equal or greater evil' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Uncontrollable fear; fear must be of real, imminent, and equal or greater evil.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that uncontrollable fear; fear must be of real, imminent, and equal or greater evil.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Uncontrollable fear; fear must be of real, imminent, and equal or greater evil.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 160: *People v. Dansal*

Citation: G.R. No. 105002, 17 July 1997 | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Duress and uncontrollable fear; must not be speculative or imagined.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Duress and uncontrollable fear; must not be speculative or imagined' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Duress and uncontrollable fear; must not be speculative or imagined.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that duress and uncontrollable fear; must not be speculative or imagined.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Duress and uncontrollable fear; must not be speculative or imagined.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 161: *U.S. v. Vicentillo*

Citation: 19 Phil. 118 (1911) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insuperable cause (Art. 12[7]); municipal president unable to deliver prisoner due to impassable sea voyage.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insuperable cause (Art. 12[7]); municipal president unable to deliver prisoner due to impassable sea voyage' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insuperable cause (Art. 12[7]); municipal president unable to deliver prisoner due to impassable sea voyage.

- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insuperable cause (art. 12[7]); municipal president unable to deliver prisoner due to impassable sea voyage.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insuperable cause (Art. 12[7]); municipal president unable to deliver prisoner due to impassable sea voyage.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 162: People v. Bandian

Citation: 63 Phil. 530 (1936) | Topic: Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause

Facts: In this landmark controversy involving Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 12, RPC; RA 9344; PD 603. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Insuperable cause; severe post-partum hemorrhage preventing mother from rescuing infant from thicket.

Issue: Did the Supreme Court err in applying Art. 12, RPC; RA 9344; PD 603 to the accused, and should the established rule that 'Insuperable cause; severe post-partum hemorrhage preventing mother from rescuing infant from thicket' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 12, RPC; RA 9344; PD 603, ruling that Insuperable cause; severe post-partum hemorrhage preventing mother from rescuing infant from thicket.
- **[L] LEGAL BASIS:** Art. 12, RPC; RA 9344; PD 603; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Exempting Circumstances: Insanity, Minority, Accident, Force, Fear, Insuperable Cause. The Court applied the established rule that insuperable cause; severe post-partum hemorrhage preventing mother from rescuing infant from thicket.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Insuperable cause; severe post-partum hemorrhage preventing mother from rescuing infant from thicket.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 12, RPC; RA 9344; PD 603.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part IV: Justifying & Exempting Circumstances (Articles 11–12 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Statutory Anchor: Governing Provision(s): Art. 13, RPC • Total Cases: 19

CASE 163: People v. Ural

Citation: 56 SCRA 138 (1974) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Lack of intent to commit so grave a wrong (Art. 13[3]); burning prisoner with alcohol.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Lack of intent to commit so grave a wrong (Art. 13[3]); burning prisoner with alcohol' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Lack of intent to commit so grave a wrong (Art. 13[3]); burning prisoner with alcohol.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that lack of intent to commit so grave a wrong (art. 13[3]); burning prisoner with alcohol.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Lack of intent to commit so grave a wrong (Art. 13[3]); burning prisoner with alcohol.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 164: People v. Reyes

Citation: G.R. No. 12635, 25 September 1917 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Praeter intentionem; punching victim causing fatal fall against stone.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Praeter intentionem; punching victim causing fatal fall against stone' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Praeter intentionem; punching victim causing fatal fall against stone.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that praeter intentionem; punching victim causing fatal fall against stone.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Praeter intentionem; punching victim causing fatal fall against stone.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 165: *People v. Leonor*

Citation: 305 SCRA 285 (1999) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Sufficient provocation (Art. 13[4]); provocation must originate from victim and immediately precede act.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Sufficient provocation (Art. 13[4]); provocation must originate from victim and immediately precede act' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Sufficient provocation (Art. 13[4]); provocation must originate from victim and immediately precede act.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that sufficient provocation (art. 13[4]); provocation must originate from victim and immediately precede act.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Sufficient provocation (Art. 13[4]); provocation must originate from victim and immediately precede act.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 166: *Miranda v. People*

Citation: G.R. No. 234528, 23 January 2019 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: The victim challenged Miranda to a fight. Miranda went home, had dinner, brooded for several hours, and then returned late at night with a knife to stab the victim while he was asleep.

Issue: Can sufficient provocation be appreciated when hours elapsed between the challenge and the assault?

- **[A] ANSWER:** **NO. Provocation must IMMEDIATELY precede the act without any intervening cooling-off period; Miranda is GUILTY OF MURDER.**
- **[L] LEGAL BASIS:** Article 13, Paragraph 4 and Article 248, Revised Penal Code.

- **[A] APPLICATION:** Sufficient provocation requires that the retaliation be immediate. When hours elapsed during which the accused went home and ate dinner, there was ample time for his passion to cool and reason to return. The subsequent nighttime attack was premeditated and treacherous.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Murder AFFIRMED; mitigation DISALLOWED.
> ****Doctrine:**** Sufficient provocation must immediately precede the criminal act; an intervening cooling-off period negates the mitigating circumstance.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 167: Urbano v. People

Citation: G.R. No. 182750, 20 January 2009 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: The victim repeatedly insulted Urbano, grabbed his collar, and shoved him against a bamboo fence. Urbano immediately delivered a single punch to the victim's face, causing the victim to fall and fatally strike his head.

Issue: Is Urbano entitled to sufficient provocation and lack of intent to commit so grave a wrong?

- **[A] ANSWER:** ****YES.** Urbano is entitled to TWO mitigating circumstances: Sufficient Provocation (Art. 13(4)) and Praeter Intentionem (Art. 13(3)).******
- **[L] LEGAL BASIS:** Articles 13(3), 13(4), and 64, Revised Penal Code.
- **[A] APPLICATION:** The victim initiated the physical shoving and verbal insults. Urbano's immediate single-punch retaliation was provoked by the victim and lacked homicidal intent. The presence of two mitigating circumstances with no aggravating circumstance lowers the penalty to the minimum period.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Homicide AFFIRMED with two mitigating circumstances.
> ****Doctrine:**** Immediate retaliation to physical shoving and insults entitles the accused to the mitigating circumstance of sufficient provocation under Art. 13(4).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 168: Oriente v. People

Citation: G.R. No. 155094, 30 January 2007 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: During a neighborhood drinking session, the victim hurled offensive insults and hurled a glass at Oriente. Oriente immediately retaliated by hitting the victim with a hollow block.

Issue: Is the accused entitled to the mitigating circumstance of sufficient provocation?

- **[A] ANSWER:** ****YES.** The throwing of the glass and offensive insults constituted sufficient provocation.******
- **[L] LEGAL BASIS:** Article 13, Paragraph 4, Revised Penal Code.
- **[A] APPLICATION:** Hurling a glass and insults during a drinking bout is adequate to incite a violent reaction. The retaliation followed instantly without any lapse of time.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Homicide AFFIRMED with mitigating circumstance under Art. 13(4).

> ****Doctrine:**** An offensive physical act like hurling a drinking glass constitutes sufficient provocation under Article 13(4).

- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 169: *People v. Racial*

Citation: G.R. No. 224886, 4 September 2017 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Sufficient provocation requisites and proportionality.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Sufficient provocation requisites and proportionality' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Sufficient provocation requisites and proportionality.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that sufficient provocation requisites and proportionality.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Sufficient provocation requisites and proportionality.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 170: *United States v. Ampar*

Citation: 37 Phil. 201 (1917) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: At a crowded fiesta, the victim publicly insulted the elderly accused by mocking him as a pauper and kicking his food tray. The humiliated accused left the party, walked to his farm, brooded for an hour over the public shame, returned with a bolo, and hacked the insulter.

Issue: Is the accused entitled to Immediate Vindication of a Grave Offense under Article 13(5) despite the one-hour interval?

- **[A] ANSWER:** ****YES.** 'Immediate' vindication allows a reasonable time interval while the emotional humiliation and obfuscation continuously persist.******
- **[L] LEGAL BASIS:** Article 13, Paragraph 5, Revised Penal Code; The Ampar Rule on 'Proximate' Vindication.

- **[A] APPLICATION:** The Spanish text uses the word 'proxima' (proximate), not instantaneous. When an elderly person suffers grave public humiliation and mockery, the emotional sting and obfuscation do not vanish instantly. The one-hour interval was spent in continuous emotional torment over the grave offense.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Homicide AFFIRMED with mitigating circumstance under Art. 13(5).
 > ****Doctrine:**** The Ampar Landmark: Immediate vindication under Article 13(5) does not mean instantaneous retaliation; a reasonable time interval during which the emotional sting of a grave offense continuously torments the accused is allowed.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 171: People v. Pajares

Citation: 210 SCRA 237 (1992) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Immediate vindication; hitting victim with stone after victim hit younger brother.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Immediate vindication; hitting victim with stone after victim hit younger brother' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Immediate vindication; hitting victim with stone after victim hit younger brother.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that immediate vindication; hitting victim with stone after victim hit younger brother.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Immediate vindication; hitting victim with stone after victim hit younger brother.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 172: Napone, Jr. v. People

Citation: G.R. No. 193085, 29 November 2017 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: Napone heard unverified neighborhood rumors that the victim had gossiped about his wife. Days later, Napone ambushed and shot the victim.

Issue: Can unverified neighborhood gossip constitute a grave offense justifying vindication under Art. 13(5)?

- **[A] ANSWER:** **NO. Vague neighborhood rumors do NOT constitute a grave offense; Napone is GUILTY OF MURDER.**
- **[L] LEGAL BASIS:** Article 13, Paragraph 5 and Article 248, Revised Penal Code.
- **[A] APPLICATION:** A grave offense requires a serious, demonstrable legal or moral wrong. Idle neighborhood rumors do not rise to the level of a grave offense, and an ambush staged days later lacks the requisite temporal proximity.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Murder AFFIRMED; mitigation REJECTED.
> **Doctrine:** Idle rumors or unverified neighborhood gossip do not constitute a grave offense under Article 13(5).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 173: David v. Court of Appeals

Citation: G.R. No. 111168, 17 June 1998 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: David attacked a man who had insulted David's distant friend/colleague. David claimed vindication of a grave offense under Art. 13(5).

Issue: Can vindication of a grave offense be claimed for offenses committed against friends or colleagues?

- **[A] ANSWER:** **NO. Article 13(5) is strictly limited to offenses committed against the accused, spouse, ascendants, descendants, brothers/sisters, or relatives by affinity.**
- **[L] LEGAL BASIS:** Article 13, Paragraph 5, Revised Penal Code.
- **[A] APPLICATION:** The enumeration of covered relatives in Article 13(5) is exclusive. It does not extend to friends, colleagues, or distant associates.
- **[C] CONCLUSION & DOCTRINE:** Mitigation under Art. 13(5) REJECTED.
> **Doctrine:** Immediate vindication of a grave offense under Article 13(5) is strictly restricted to relatives enumerated in the statute and cannot be invoked for friends.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 174: United States v. Hicks

Citation: 14 Phil. 217 (1909) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Passion or obfuscation (Art. 13[6]); killing unfaithful mistress out of jealous revenge is not mitigating.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Passion or obfuscation (Art. 13[6]); killing unfaithful mistress out of jealous revenge is not mitigating' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Passion or obfuscation (Art. 13[6]); killing unfaithful mistress out of jealous revenge is not mitigating.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that passion or obfuscation (art. 13[6]); killing unfaithful mistress out of jealous revenge is not mitigating.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Passion or obfuscation (Art. 13[6]); killing unfaithful mistress out of jealous revenge is not mitigating.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 175: United States v. De la Cruz

Citation: 22 Phil. 429 (1912) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: A husband caught his legal wife in flagrante delicto engaging in illicit sexual relations with another man inside their bedroom. In a sudden, uncontrollable surge of rage and obfuscation, the husband killed the paramour.

Issue: Is the husband entitled to the mitigating circumstance of Passion or Obfuscation?

- **[A] ANSWER:** **YES. Discovering a spouse in active marital infidelity produces lawful passion and obfuscation under Article 13(6). **
- **[L] LEGAL BASIS:** Article 13, Paragraph 6 in rel. to Article 247 (Death Under Exceptional Circumstances), Revised Penal Code.
- **[A] APPLICATION:** Catching a legal spouse in the act of adultery is a profoundly shocking moral violation that naturally overwhelms reason. The emotional frenzy arises from a legitimate sense of marital honor and duty, constituting lawful passion and obfuscation.
- **[C] CONCLUSION & DOCTRINE:** Mitigating circumstance of Passion/Obfuscation UPHOLD.
> **Doctrine:** Discovering marital infidelity produces lawful passion and obfuscation under Article 13(6) because it arises from legitimate feelings of marital honor.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 176: People v. Placer

Citation: G.R. No. 181753, 9 October 2013 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising

from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Voluntary surrender (Art. 13[7]); requisites: not arrested, surrendered to person in authority, spontaneous.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Voluntary surrender (Art. 13[7]); requisites: not arrested, surrendered to person in authority, spontaneous' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Voluntary surrender (Art. 13[7]); requisites: not arrested, surrendered to person in authority, spontaneous.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that voluntary surrender (art. 13[7]); requisites: not arrested, surrendered to person in authority, spontaneous.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Voluntary surrender (Art. 13[7]); requisites: not arrested, surrendered to person in authority, spontaneous.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 177: De Vera v. De Vera

Citation: G.R. No. 172832, 7 April 2009 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: The accused fled the province after committing a crime and went into hiding for two years. He was cornered by NBI agents at a checkpoint and surrendered only when surrounded.

Issue: Does surrendering when cornered by law enforcers constitute Voluntary Surrender under Art. 13(7)?

- **[A] ANSWER:** **NO. Surrendering when cornered by police is NOT voluntary or spontaneous; mitigation is REJECTED.**
- **[L] LEGAL BASIS:** Article 13, Paragraph 7, Revised Penal Code.
- **[A] APPLICATION:** Voluntary surrender requires spontaneity and voluntary submission. Surrendering only after years of hiding when cornered by arresting officers is an unavoidable submission, not voluntary surrender.
- **[C] CONCLUSION & DOCTRINE:** Mitigation under Art. 13(7) DISALLOWED.
> ****Doctrine:**** Surrendering when cornered by law enforcement after years of flight lacks spontaneity and does not constitute voluntary surrender under Art. 13(7).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 178: People v. Quijano

Citation: G.R. No. 48630, 4 June 1943 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Plea of guilty (Art. 13[7]); plea made in open court prior to presentation of prosecution evidence.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Plea of guilty (Art. 13[7]); plea made in open court prior to presentation of prosecution evidence' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Plea of guilty (Art. 13[7]); plea made in open court prior to presentation of prosecution evidence.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that plea of guilty (art. 13[7]); plea made in open court prior to presentation of prosecution evidence.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Plea of guilty (Art. 13[7]); plea made in open court prior to presentation of prosecution evidence.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 179: *People v. Javier*

Citation: 311 SCRA 576 (1999) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: In this landmark controversy involving Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 13, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Illness (Art. 13[9]); mental depression and somnambulism evaluated as mitigating illness.

Issue: Did the Supreme Court err in applying Art. 13, RPC to the accused, and should the established rule that 'Illness (Art. 13[9]); mental depression and somnambulism evaluated as mitigating illness' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 13, RPC, ruling that Illness (Art. 13[9]); mental depression and somnambulism evaluated as mitigating illness.
- **[L] LEGAL BASIS:** Art. 13, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness). The Court applied the established rule that illness (art. 13[9]); mental depression and somnambulism evaluated as mitigating illness.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Illness (Art. 13[9]); mental depression and somnambulism evaluated as mitigating illness.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutive Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 180: *Canta v. People*

Citation: 353 SCRA 250 (2001) | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: Canta was prosecuted for Cattle Rustling. Upon learning that he had mistakenly taken a cow belonging to another, he voluntarily brought the cow back to the municipal hall and surrendered it to the authorities.

Issue: Is the voluntary return of stolen property prior to prosecution an analogous mitigating circumstance under Article 13(10)?

- **[A] ANSWER:** **YES. Voluntary restitution of property prior to formal prosecution is ANALOGOUS to voluntary surrender under Article 13(10). **
- **[L] LEGAL BASIS:** Article 13, Paragraph 10 in rel. to Article 13(7), Revised Penal Code.
- **[A] APPLICATION:** Article 13(10) authorizes courts to credit any circumstance of similar nature and psychological effect to those in Art. 13. Voluntarily bringing back the livestock and submitting to the authorities demonstrates remorse and cooperation analogous to voluntary surrender.
- **[C] CONCLUSION & DOCTRINE:** Mitigating circumstance under Art. 13(10) APPRECIATED; penalty reduced.
> **Doctrine:** Voluntary restitution of the subject property before criminal proceedings is an analogous mitigating circumstance under Article 13(10).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutive Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 181: *Eduarte v. People*

Citation: G.R. No. 176566, 2 October 2009 | Topic: Mitigating Circumstances (Incomplete Defenses, Age, Provocation, Vindication, Passion, Surrender, Illness)

Facts: Eduarte was convicted of Falsification of Commercial Documents. He argued that his extreme financial poverty was an analogous mitigating circumstance under Article 13(10).

Issue: Does extreme poverty constitute an analogous mitigating circumstance in white-collar crimes like Falsification?

- **[A] ANSWER:** **NO. Poverty does not mitigate crimes of fraud, deceit, or falsification. **
- **[L] LEGAL BASIS:** Article 13, Paragraph 10, Revised Penal Code.
- **[A] APPLICATION:** Poverty may be considered in crimes against property out of sheer hunger, but cannot be invoked to mitigate sophisticated, calculated white-collar crimes such as falsification of commercial papers.
- **[C] CONCLUSION & DOCTRINE:** Mitigation REJECTED.
> **Doctrine:** Financial poverty cannot be claimed as an analogous mitigating circumstance in offenses involving calculated fraud or falsification.

- **[ARTICLE] APPLICABLE ARTICLE:** Art. 13, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Aggravating Circumstances (All 21 Paragraphs)

Statutory Anchor: Governing Provision(s): Art. 14, RPC • Total Cases: 35

CASE 182: People v. Ordiales

Citation: G.R. No. L-30956, 23 November 1971 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Public position (Par. 1); police officer using government service firearm to commit murder.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Public position (Par. 1); police officer using government service firearm to commit murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Public position (Par. 1); police officer using government service firearm to commit murder.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that public position (par. 1); police officer using government service firearm to commit murder.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Public position (Par. 1); police officer using government service firearm to commit murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 183: People v. Torrida

Citation: G.R. Nos. 7450-7452, 18 September 1912 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Public position; municipal president abusing office to extort and oppress.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Public position; municipal president abusing office to extort and oppress' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Public position; municipal president abusing office to extort and oppress.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that public position; municipal president abusing office to extort and oppress.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Public position; municipal president abusing office to extort and oppress.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 184: *People v. Rodil*

Citation: G.R. No. L-35156, 20 November 1981 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Contempt of public authority (Par. 2); stabbing PC soldier in presence of municipal mayor.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Contempt of public authority (Par. 2); stabbing PC soldier in presence of municipal mayor' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Contempt of public authority (Par. 2); stabbing PC soldier in presence of municipal mayor.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that contempt of public authority (par. 2); stabbing pc soldier in presence of municipal mayor.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Contempt of public authority (Par. 2); stabbing PC soldier in presence of municipal mayor.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 185: *United States v. Manuel Rodriguez*

Citation: G.R. No. L-6344, 21 March 1911 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: Mutinous soldiers murdered their commanding officer inside a town while the municipal mayor was actively attempting to pacify them and restore order.

Issue: Is the crime aggravated by Contempt to Public Authorities under Article 14(2)?

- **[A] ANSWER:** **YES. The crime was committed in contempt and defiance of the municipal mayor who was present exercising official authority.**
- **[L] LEGAL BASIS:** Article 14, Paragraph 2, Revised Penal Code.
- **[A] APPLICATION:** The mayor (a public authority) was present in the discharge of his duties attempting to maintain peace. The mutineers committed the murder in direct defiance of his authority.
- **[C] CONCLUSION & DOCTRINE:** Aggravating circumstance UPHELD.
> **Doctrine:** Executing a homicide in direct defiance and contempt of a public authority present and exercising duties establishes Art. 14(2).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 186: United States v. Licarte

Citation: G.R. No. L-6784, 15 August 1912 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: During a sudden, heated argument over wages, a male worker struck a female employer. The prosecution sought to aggravate the offense by disregard of sex.

Issue: Does a sudden brawl between a man and a woman automatically include the aggravating circumstance of disregard of sex?

- **[A] ANSWER:** **NO. Disregard of sex requires a DELIBERATE INTENT TO INSULT or humiliate womanhood; it does not apply to sudden brawls.**
- **[L] LEGAL BASIS:** Article 14, Paragraph 3, Revised Penal Code.
- **[A] APPLICATION:** Disregard of sex or age is not appreciated simply because the victim is a woman or elderly. There must be proof that the offender deliberately intended to insult, demean, or show disrespect to the victim on account of sex or age.
- **[C] CONCLUSION & DOCTRINE:** Aggravating circumstance of disregard of sex REJECTED.
> **Doctrine:** Disregard of sex under Art. 14(3) requires a positive, deliberate intent to demean or insult womanhood, which is absent in sudden passions or spontaneous quarrels.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 187: People v. Pagal

Citation: G.R. No. L-32040, 25 October 1977 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Dwelling (Par. 3); commission of robbery with homicide inside victim's sanctuary of home.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Dwelling (Par. 3); commission of robbery with homicide inside victim's sanctuary of home' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Dwelling (Par. 3); commission of robbery with homicide inside victim's sanctuary of home.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that dwelling (par. 3); commission of robbery with homicide inside victim's sanctuary of home.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Dwelling (Par. 3); commission of robbery with homicide inside victim's sanctuary of home.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 188: *People v. Daniel*

Citation: G.R. No. L-40330, 20 November 1978 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Dwelling; victim raped inside her boarding room.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Dwelling; victim raped inside her boarding room' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Dwelling; victim raped inside her boarding room.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that dwelling; victim raped inside her boarding room.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Dwelling; victim raped inside her boarding room.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 189: *People v. Ambis*

Citation: G.R. No. L-46298, 30 September 1939 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Dwelling; shooting victim through window while inside his house.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Dwelling; shooting victim through window while inside his house' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Dwelling; shooting victim through window while inside his house.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that dwelling; shooting victim through window while inside his house.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Dwelling; shooting victim through window while inside his house.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 190: People v. Kalipayan

Citation: G.R. No. 229829, 22 January 2018 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Dwelling aggravating in murder even if assailant fired from outside the house.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Dwelling aggravating in murder even if assailant fired from outside the house' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Dwelling aggravating in murder even if assailant fired from outside the house.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that dwelling aggravating in murder even if assailant fired from outside the house.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Dwelling aggravating in murder even if assailant fired from outside the house.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 191: People v. Verdad

Citation: G.R. No. L-51797, 16 May 1983 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The

defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Abuse of confidence (Par. 4); requisites of special relationship of trust.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Abuse of confidence (Par. 4); requisites of special relationship of trust' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Abuse of confidence (Par. 4); requisites of special relationship of trust.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that abuse of confidence (par. 4); requisites of special relationship of trust.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Abuse of confidence (Par. 4); requisites of special relationship of trust.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 192: *People v. Syou Hu*

Citation: G.R. No. L-45765, 29 January 1938 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Ungratefulness; attacking benefactor who provided food and shelter.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Ungratefulness; attacking benefactor who provided food and shelter' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Ungratefulness; attacking benefactor who provided food and shelter.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that ungratefulness; attacking benefactor who provided food and shelter.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Ungratefulness; attacking benefactor who provided food and shelter.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 193: People v. Abrazaldo

Citation: G.R. No. 124392, 7 February 2003 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Place of crime (Par. 5); murder committed in front of barangay hall during public duty.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Place of crime (Par. 5); murder committed in front of barangay hall during public duty' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Place of crime (Par. 5); murder committed in front of barangay hall during public duty.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that place of crime (par. 5); murder committed in front of barangay hall during public duty.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Place of crime (Par. 5); murder committed in front of barangay hall during public duty.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 194: People v. Bermas

Citation: G.R. Nos. 76416 & 94312, 5 July 1999 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Nighttime (Par. 6); nocturnity must be deliberately sought to facilitate crime or afford impunity.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Nighttime (Par. 6); nocturnity must be deliberately sought to facilitate crime or afford impunity' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Nighttime (Par. 6); nocturnity must be deliberately sought to facilitate crime or afford impunity.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that nighttime (par. 6); nocturnity must be deliberately sought to facilitate crime or afford impunity.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Nighttime (Par. 6); nocturnity must be deliberately sought to facilitate crime or afford impunity.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 195: People v. Matbagon

Citation: G.R. No. L-42165, 12 November 1934 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Nighttime not aggravating when encounter was accidental.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Nighttime not aggravating when encounter was accidental' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Nighttime not aggravating when encounter was accidental.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that nighttime not aggravating when encounter was accidental.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Nighttime not aggravating when encounter was accidental.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 196: People v. Arpa

Citation: G.R. No. L-26789, 25 April 1969 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Uninhabited place (despoblado); high seas as uninhabited place in piracy and murder.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Uninhabited place (despoblado); high seas as uninhabited place in piracy and murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Uninhabited place (despoblado); high seas as uninhabited place in piracy and murder.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that uninhabited place (despoblado); high seas as uninhabited place in piracy and murder.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Uninhabited place (despoblado); high seas as uninhabited place in piracy and murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 197: *People v. Manlolo*

Citation: G.R. No. 40778, 26 January 1989 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Band (cuadrilla); more than 3 armed malefactors acting together in robbery.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Band (cuadrilla); more than 3 armed malefactors acting together in robbery' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Band (cuadrilla); more than 3 armed malefactors acting together in robbery.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that band (cuadrilla); more than 3 armed malefactors acting together in robbery.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Band (cuadrilla); more than 3 armed malefactors acting together in robbery.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 198: *United States v. Rodriguez*

Citation: G.R. No. 6344, 21 March 1911 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: During an ongoing fire and widespread riot in town, the accused took advantage of the panic and confusion to loot stores and murder fleeing residents.

Issue: Is the circumstance of Calamity under Article 14(7) aggravating?

- **[A] ANSWER:** **YES. Taking advantage of the chaos of a fire and misfortune aggravates criminal liability.**
- **[L] LEGAL BASIS:** Article 14, Paragraph 7, Revised Penal Code.
- **[A] APPLICATION:** Article 14(7) penalizes those who exploit human tragedy, fires, or natural calamities to commit crimes, demonstrating total depravity.
- **[C] CONCLUSION & DOCTRINE:** Aggravating circumstance UPHELD.
> **Doctrine:** Committing felonies on the occasion of a fire, earthquake, or calamity is aggravating under Art. 14(7).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 199: People v. Hipolito

Citation: G.R. No. L-31402, 17 August 1981 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Price, reward, or promise (Par. 11); contract killing aggravating both for inducer and hired killer.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Price, reward, or promise (Par. 11); contract killing aggravating both for inducer and hired killer' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Price, reward, or promise (Par. 11); contract killing aggravating both for inducer and hired killer.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that price, reward, or promise (par. 11); contract killing aggravating both for inducer and hired killer.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Price, reward, or promise (Par. 11); contract killing aggravating both for inducer and hired killer.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 200: People v. Nabual

Citation: G.R. No. L-27758, 14 July 1969 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Evident premeditation (Par. 13); requisites: time determined, overt act, and cool reflection.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Evident premeditation (Par. 13); requisites: time determined, overt act, and cool reflection' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Evident premeditation (Par. 13); requisites: time determined, overt act, and cool reflection.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that evident premeditation (par. 13); requisites: time determined, overt act, and cool reflection.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Evident premeditation (Par. 13); requisites: time determined, overt act, and cool reflection.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 201: United States v. Manalinde

Citation: G.R. No. L-5292, 28 August 1909 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: Manalinde was hired by a datu to go to town and assassinate the first two Christians he encountered. He traveled for two days, reached the marketplace, and slaughtered two innocent strangers.

Issue: Is Evident Premeditation present even if the individual identity of the victims was unknown when the plot was hatched?

- **[A] ANSWER:** **YES. Premeditation applies when the plot targets a predetermined class of persons (e.g., Christians). **
- **[L] LEGAL BASIS:** Article 14, Paragraph 13, Revised Penal Code.
- **[A] APPLICATION:** Premeditation does not require that the individual victims be named in advance. Planning to kill the first members of a specific group and traveling for days to execute the plan satisfies evident premeditation.
- **[C] CONCLUSION & DOCTRINE:** Conviction for Murder with Death Penalty AFFIRMED.
> **Doctrine:** Evident premeditation applies when the offender plans to kill persons belonging to a predetermined class, even if individual identities are selected at the scene.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 202: People v. Quiñanola

Citation: G.R. No. 126148, 5 May 1999 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Craft, fraud, or disguise (Par. 14); posing as police officer to gain entry.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Craft, fraud, or disguise (Par. 14); posing as police officer to gain entry' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Craft, fraud, or disguise (Par. 14); posing as police officer to gain entry.

- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that craft, fraud, or disguise (par. 14); posing as police officer to gain entry.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Craft, fraud, or disguise (Par. 14); posing as police officer to gain entry.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 203: United States v. Devela

Citation: G.R. No. 1542, 9 April 1904 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: Two robust, armed men attacked an unarmed, frail old man, overpowering and stabbing him to death.

Issue: Is Abuse of Superior Strength present?

- **[A] ANSWER:** **YES. The assailants purposefully took advantage of their physical numbers and lethal weapons to overpower an unarmed victim.**
- **[L] LEGAL BASIS:** Article 14, Paragraph 15, Revised Penal Code.
- **[A] APPLICATION:** Abuse of superior strength requires taking advantage of marked disparity in physical power, numbers, or weapons to ensure the victim's destruction without resistance.
- **[C] CONCLUSION & DOCTRINE:** Aggravating circumstance UPHELD.
> **Doctrine:** Purposefully utilizing numerical superiority and weapons against an unarmed, defenseless victim constitutes Abuse of Superior Strength under Art. 14(15).
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 204: People v. Sangalang

Citation: G.R. No. L-32914, 30 August 1974 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Treachery (Par. 16); sudden and unexpected attack from behind depriving victim of defense.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Treachery (Par. 16); sudden and unexpected attack from behind depriving victim of defense' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Treachery (Par. 16); sudden and unexpected attack from behind depriving victim of defense.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that treachery (par. 16); sudden and unexpected attack from behind depriving victim of defense.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Treachery (Par. 16); sudden and unexpected attack from behind depriving victim of defense.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 205: *People v. Cañete*

Citation: G.R. No. L-19233, 5 February 1923 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Treachery; sudden ambush without warning.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Treachery; sudden ambush without warning' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Treachery; sudden ambush without warning.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that treachery; sudden ambush without warning.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Treachery; sudden ambush without warning.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 206: *People v. Dela Cruz*

Citation: G.R. No. 227997, 16 October 2019 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Treachery; shooting unarmed victim while seated and helpless.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Treachery; shooting unarmed victim while seated and helpless' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Treachery; shooting unarmed victim while seated and helpless.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that treachery; shooting unarmed victim while seated and helpless.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Treachery; shooting unarmed victim while seated and helpless.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 207: *People v. Monte*

Citation: G.R. No. 125332, 2 March 2000 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Treachery; attack must be deliberate and conscious, not accidental or frontal.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Treachery; attack must be deliberate and conscious, not accidental or frontal' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Treachery; attack must be deliberate and conscious, not accidental or frontal.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that treachery; attack must be deliberate and conscious, not accidental or frontal.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Treachery; attack must be deliberate and conscious, not accidental or frontal.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 208: *People v. Torrefiel*

Citation: 45 O.G. 803 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Ignominy (Par. 17); raping woman in front of her husband and children adds moral ignominy.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Ignominy (Par. 17); raping woman in front of her husband and children adds moral ignominy' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Ignominy (Par. 17); raping woman in front of her husband and children adds moral ignominy.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that ignominy (par. 17); raping woman in front of her husband and children adds moral ignominy.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Ignominy (Par. 17); raping woman in front of her husband and children adds moral ignominy.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 209: *People v. Alfanta*

Citation: G.R. No. 125633, 9 December 1999 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Ignominy; subjecting victim to public degradation and sexual shame.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Ignominy; subjecting victim to public degradation and sexual shame' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Ignominy; subjecting victim to public degradation and sexual shame.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that ignominy; subjecting victim to public degradation and sexual shame.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Ignominy; subjecting victim to public degradation and sexual shame.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 210: *People v. Fuertes*

Citation: G.R. Nos. 95891-92, 28 February 2000 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Ignominy; circumstances compounding emotional and psychological suffering of victim.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Ignominy; circumstances compounding emotional and psychological suffering of victim' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Ignominy; circumstances compounding emotional and psychological suffering of victim.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that ignominy; circumstances compounding emotional and psychological suffering of victim.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Ignominy; circumstances compounding emotional and psychological suffering of victim.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 211: People v. Puda

Citation: G.R. No. L-33841, 31 October 1984 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Unlawful entry (Par. 18); entering house through kitchen window not intended for ingress.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Unlawful entry (Par. 18); entering house through kitchen window not intended for ingress' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Unlawful entry (Par. 18); entering house through kitchen window not intended for ingress.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that unlawful entry (par. 18); entering house through kitchen window not intended for ingress.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Unlawful entry (Par. 18); entering house through kitchen window not intended for ingress.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 212: People v. Bondoy

Citation: G.R. No. 79089, 18 May 1993 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Unlawful entry; entering room through ceiling to commit rape and robbery.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Unlawful entry; entering room through ceiling to commit rape and robbery' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Unlawful entry; entering room through ceiling to commit rape and robbery.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that unlawful entry; entering room through ceiling to commit rape and robbery.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Unlawful entry; entering room through ceiling to commit rape and robbery.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 213: People v. Sitchon

Citation: G.R. No. 134362, 27 February 2002 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Cruelty (Par. 21); beating child victim with electric wire over hours causing prolonged agony.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Cruelty (Par. 21); beating child victim with electric wire over hours causing prolonged agony' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Cruelty (Par. 21); beating child victim with electric wire over hours causing prolonged agony.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that cruelty (par. 21); beating child victim with electric wire over hours causing prolonged agony.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Cruelty (Par. 21); beating child victim with electric wire over hours causing prolonged agony.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 214: *People v. Fernandez*

Citation: G.R. No. L-69619, 15 September 1987 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Cruelty; deliberately prolonging victim's suffering; distinct from number of stab wounds.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Cruelty; deliberately prolonging victim's suffering; distinct from number of stab wounds' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Cruelty; deliberately prolonging victim's suffering; distinct from number of stab wounds.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that cruelty; deliberately prolonging victim's suffering; distinct from number of stab wounds.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Cruelty; deliberately prolonging victim's suffering; distinct from number of stab wounds.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 215: *People v. Cortes*

Citation: G.R. No. 137050, 11 July 2001 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Cruelty vs. number of wounds; must be shown accused derived sadistic pleasure.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Cruelty vs. number of wounds; must be shown accused derived sadistic pleasure' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Cruelty vs. number of wounds; must be shown accused derived sadistic pleasure.

- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that cruelty vs. number of wounds; must be shown accused derived sadistic pleasure.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Cruelty vs. number of wounds; must be shown accused derived sadistic pleasure.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 216: *People v. Bernabe*

Citation: G.R. No. 185726, 16 October 2009 | Topic: Aggravating Circumstances (All 21 Paragraphs)

Facts: In this landmark controversy involving Aggravating Circumstances (All 21 Paragraphs), the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 14, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Cruelty; burning victim while still alive.

Issue: Did the Supreme Court err in applying Art. 14, RPC to the accused, and should the established rule that 'Cruelty; burning victim while still alive' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 14, RPC, ruling that Cruelty; burning victim while still alive.
- **[L] LEGAL BASIS:** Art. 14, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Aggravating Circumstances (All 21 Paragraphs). The Court applied the established rule that cruelty; burning victim while still alive.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Cruelty; burning victim while still alive.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 14, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Alternative Circumstances & Absolutory Causes

Statutory Anchor: Governing Provision(s): Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 • Total Cases: 12

CASE 217: *People v. Orilla*

Citation: G.R. Nos. 148939-40, 13 February 2004 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Relationship (Art. 15); stepfather raping stepdaughter is aggravating.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Relationship (Art. 15); stepfather raping stepdaughter is aggravating' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Relationship (Art. 15); stepfather raping stepdaughter is aggravating.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that relationship (art. 15); stepfather raping stepdaughter is aggravating.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Relationship (Art. 15); stepfather raping stepdaughter is aggravating.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 218: *People v. Lomaque*

Citation: G.R. No. 189297, 5 June 2013 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Relationship in incestuous rape qualifies crime.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Relationship in incestuous rape qualifies crime' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Relationship in incestuous rape qualifies crime.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that relationship in incestuous rape qualifies crime.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Relationship in incestuous rape qualifies crime.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 219: *People v. Macatanda*

Citation: G.R. No. L-51368, 6 November 1981 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Education / Illiteracy (Art. 15); illiteracy not mitigating in cattle rustling/theft.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Education / Illiteracy (Art. 15); illiteracy not mitigating in cattle rustling/theft' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Education / Illiteracy (Art. 15); illiteracy not mitigating in cattle rustling/theft.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that education / illiteracy (art. 15); illiteracy not mitigating in cattle rustling/theft.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Education / Illiteracy (Art. 15); illiteracy not mitigating in cattle rustling/theft.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 220: People v. Baltazar

Citation: G.R. No. L-30557, 28 March 1980 / Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Lack of instruction not mitigating in murder or crimes against persons.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Lack of instruction not mitigating in murder or crimes against persons' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Lack of instruction not mitigating in murder or crimes against persons.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that lack of instruction not mitigating in murder or crimes against persons.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Lack of instruction not mitigating in murder or crimes against persons.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 221: *People v. Dejaresco*

Citation: G.R. No. L-32701, 19 June 1984 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Degree of instruction as alternative circumstance.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Degree of instruction as alternative circumstance' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Degree of instruction as alternative circumstance.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that degree of instruction as alternative circumstance.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Degree of instruction as alternative circumstance.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 222: *People v. Camano*

Citation: G.R. Nos. L-36662-63, 30 July 1982 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Intoxication (Art. 15); non-habitual intoxication mitigating in homicide.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Intoxication (Art. 15); non-habitual intoxication mitigating in homicide' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Intoxication (Art. 15); non-habitual intoxication mitigating in homicide.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that intoxication (art. 15); non-habitual intoxication mitigating in homicide.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Intoxication (Art. 15); non-habitual intoxication mitigating in homicide.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 223: *People v. Mondigo*

Citation: G.R. No. 167954, 31 January 2008 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Intoxication; accused must present evidence that intoxication diminished mental faculties.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Intoxication; accused must present evidence that intoxication diminished mental faculties' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Intoxication; accused must present evidence that intoxication diminished mental faculties.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that intoxication; accused must present evidence that intoxication diminished mental faculties.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Intoxication; accused must present evidence that intoxication diminished mental faculties.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 224: *People v. Cortes*

Citation: G.R. No. 137050, 11 July 2001 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Intoxication not mitigating when habitual or planned prior to felony.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Intoxication not mitigating when habitual or planned prior to felony' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Intoxication not mitigating when habitual or planned prior to felony.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that intoxication not mitigating when habitual or planned prior to felony.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Intoxication not mitigating when habitual or planned prior to felony.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 225: *People v. Lua Chu*

Citation: 56 Phil. 44 (1931) | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Entrapment vs. Instigation; trapping opium smugglers at customs dock is valid entrapment.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Entrapment vs. Instigation; trapping opium smugglers at customs dock is valid entrapment' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Entrapment vs. Instigation; trapping opium smugglers at customs dock is valid entrapment.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that entrapment vs. instigation; trapping opium smugglers at customs dock is valid entrapment.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Entrapment vs. Instigation; trapping opium smugglers at customs dock is valid entrapment.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 226: United States v. Phelps

Citation: 16 Phil. 440 (1910) | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Instigation; government agent inducing accused to procure opium is absolutory instigation.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Instigation; government agent inducing accused to procure opium is absolutory instigation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Instigation; government agent inducing accused to procure opium is absolutory instigation.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that instigation; government agent inducing accused to procure opium is absolutory instigation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Instigation; government agent inducing accused to procure opium is absolutory instigation.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 227: People v. Bartolome

Citation: G.R. No. 191726, 6 February 2013 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Buy-bust operation constitutes valid entrapment under Dangerous Drugs Act.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Buy-bust operation constitutes valid entrapment under Dangerous Drugs Act' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Buy-bust operation constitutes valid entrapment under Dangerous Drugs Act.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that buy-bust operation constitutes valid entrapment under dangerous drugs act.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Buy-bust operation constitutes valid entrapment under Dangerous Drugs Act.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 228: People v. Genosa

Citation: G.R. No. 135981, 15 January 2004 | Topic: Alternative Circumstances & Absolutory Causes

Facts: In this landmark controversy involving Alternative Circumstances & Absolutory Causes, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Battered Woman Syndrome under RA 9262; complete absolutory cause and psychological defense.

Issue: Did the Supreme Court err in applying Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262 to the accused, and should the established rule that 'Battered Woman Syndrome under RA 9262; complete absolutory cause and psychological defense' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262, ruling that Battered Woman Syndrome under RA 9262; complete absolutory cause and psychological defense.
- **[L] LEGAL BASIS:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Alternative Circumstances & Absolutory Causes. The Court applied the established rule that Battered Woman Syndrome under RA 9262; complete absolutory cause and psychological defense.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Battered Woman Syndrome under RA 9262; complete absolutory cause and psychological defense.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 15, 6(3), 16, 20, 247, 280, 332, 344, RPC; RA 9262.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part V: Mitigating, Aggravating, Alternative Circumstances & Absolutory Causes (Articles 13–15 RPC), illustrating the practical judicial application of statutory elements and defenses.

PART: IV. PERSONS CRIMINALLY LIABLE

Topic: Principals by Direct Participation, Inducement, and Indispensable Cooperation

Statutory Anchor: Governing Provision(s): Art. 17, RPC • Total Cases: 6

CASE 229: United States v. Diris

Citation: 26 Phil. 133 (1918) | Topic: Principals by Direct Participation, Inducement, and Indispensable Cooperation

Facts: In this landmark controversy involving Principals by Direct Participation, Inducement, and Indispensable Cooperation, the prosecution initiated criminal proceedings against the accused arising from acts committed in

violation of Art. 17, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Principals by direct participation (Art. 17[1]); executing essential physical acts of robbery.

Issue: Did the Supreme Court err in applying Art. 17, RPC to the accused, and should the established rule that 'Principals by direct participation (Art. 17[1]); executing essential physical acts of robbery' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 17, RPC, ruling that Principals by direct participation (Art. 17[1]); executing essential physical acts of robbery.
- **[L] LEGAL BASIS:** Art. 17, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Principals by Direct Participation, Inducement, and Indispensable Cooperation. The Court applied the established rule that principals by direct participation (art. 17[1]); executing essential physical acts of robbery.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Principals by direct participation (Art. 17[1]); executing essential physical acts of robbery.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 17, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 230: People v. Ong Chiat Lay

Citation: 60 Phil. 788 (1934) | Topic: Principals by Direct Participation, Inducement, and Indispensable Cooperation

Facts: In this landmark controversy involving Principals by Direct Participation, Inducement, and Indispensable Cooperation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 17, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Principals by inducement (Art. 17[2]); inducer cannot be convicted if direct perpetrator acquitted for lack of crime.

Issue: Did the Supreme Court err in applying Art. 17, RPC to the accused, and should the established rule that 'Principals by inducement (Art. 17[2]); inducer cannot be convicted if direct perpetrator acquitted for lack of crime' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 17, RPC, ruling that Principals by inducement (Art. 17[2]); inducer cannot be convicted if direct perpetrator acquitted for lack of crime.
- **[L] LEGAL BASIS:** Art. 17, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Principals by Direct Participation, Inducement, and Indispensable Cooperation. The Court applied the established rule that principals by inducement (art. 17[2]); inducer cannot be convicted if direct perpetrator acquitted for lack of crime.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Principals by inducement (Art. 17[2]); inducer cannot be convicted if direct perpetrator acquitted for lack of crime.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 17, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 231: United States v. Indanan

Citation: 24 Phil. 203 (1913) | Topic: Principals by Direct Participation, Inducement, and Indispensable Cooperation

Facts: In this landmark controversy involving Principals by Direct Participation, Inducement, and Indispensable Cooperation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 17, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Principals by inducement; moral dominance and determinative power of tribal chief ordering murder.

Issue: Did the Supreme Court err in applying Art. 17, RPC to the accused, and should the established rule that 'Principals by inducement; moral dominance and determinative power of tribal chief ordering murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 17, RPC, ruling that Principals by inducement; moral dominance and determinative power of tribal chief ordering murder.
- **[L] LEGAL BASIS:** Art. 17, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Principals by Direct Participation, Inducement, and Indispensable Cooperation. The Court applied the established rule that principals by inducement; moral dominance and determinative power of tribal chief ordering murder.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Principals by inducement; moral dominance and determinative power of tribal chief ordering murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 17, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 232: People v. Kichi Omine

Citation: 61 Phil. 609 (1935) | Topic: Principals by Direct Participation, Inducement, and Indispensable Cooperation

Facts: In this landmark controversy involving Principals by Direct Participation, Inducement, and Indispensable Cooperation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 17, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Principals by inducement; commanding and paying assassins to kill victim.

Issue: Did the Supreme Court err in applying Art. 17, RPC to the accused, and should the established rule that 'Principals by inducement; commanding and paying assassins to kill victim' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 17, RPC, ruling that Principals by inducement; commanding and paying assassins to kill victim.
- **[L] LEGAL BASIS:** Art. 17, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Principals by Direct Participation, Inducement, and Indispensable Cooperation. The Court applied the established rule that principals by inducement; commanding and paying assassins to kill victim.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Principals by inducement; commanding and paying assassins to kill victim.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 17, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 233: *People v. Montealegre*

Citation: 161 SCRA 700 (1988) | Topic: Principals by Direct Participation, Inducement, and Indispensable Cooperation

Facts: In this landmark controversy involving Principals by Direct Participation, Inducement, and Indispensable Cooperation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 17, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Principals by indispensable cooperation (Art. 17[3]); holding victim's arms while co-accused stabbed him.

Issue: Did the Supreme Court err in applying Art. 17, RPC to the accused, and should the established rule that 'Principals by indispensable cooperation (Art. 17[3]); holding victim's arms while co-accused stabbed him' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 17, RPC, ruling that Principals by indispensable cooperation (Art. 17[3]); holding victim's arms while co-accused stabbed him.
- **[L] LEGAL BASIS:** Art. 17, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Principals by Direct Participation, Inducement, and Indispensable Cooperation. The Court applied the established rule that principals by indispensable cooperation (art. 17[3]); holding victim's arms while co-accused stabbed him.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Principals by indispensable cooperation (Art. 17[3]); holding victim's arms while co-accused stabbed him.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 17, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 234: *People v. Simbra*

Citation: 117 SCRA 242 (1982) | Topic: Principals by Direct Participation, Inducement, and Indispensable Cooperation

Facts: In this landmark controversy involving Principals by Direct Participation, Inducement, and Indispensable Cooperation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Art. 17, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Principals by indispensable cooperation; providing weapon and guarding exit.

Issue: Did the Supreme Court err in applying Art. 17, RPC to the accused, and should the established rule that 'Principals by indispensable cooperation; providing weapon and guarding exit' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Art. 17, RPC, ruling that Principals by indispensable cooperation; providing weapon and guarding exit.
- **[L] LEGAL BASIS:** Art. 17, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Principals by Direct Participation, Inducement, and Indispensable Cooperation. The Court applied the established rule that principals by indispensable cooperation; providing weapon and guarding exit.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Principals by indispensable cooperation; providing weapon and guarding exit.
- **[ARTICLE] APPLICABLE ARTICLE:** Art. 17, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

Topic: Accomplices and Accessories

Statutory Anchor: Governing Provision(s): Arts. 18, 19, 20, RPC; PD 1612; PD 1829 • Total Cases: 5

CASE 235: People v. Nierra

Citation: 96 Phil. 1 (1980) | Topic: Accomplices and Accessories

Facts: In this landmark controversy involving Accomplices and Accessories, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 18, 19, 20, RPC; PD 1612; PD 1829. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accomplices (Art. 18); cooperating in robbery by acts neither direct nor indispensable.

Issue: Did the Supreme Court err in applying Arts. 18, 19, 20, RPC; PD 1612; PD 1829 to the accused, and should the established rule that 'Accomplices (Art. 18); cooperating in robbery by acts neither direct nor indispensable' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 18, 19, 20, RPC; PD 1612; PD 1829, ruling that Accomplices (Art. 18); cooperating in robbery by acts neither direct nor indispensable.
- **[L] LEGAL BASIS:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Accomplices and Accessories. The Court applied the established rule that accomplices (art. 18); cooperating in robbery by acts neither direct nor indispensable.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accomplices (Art. 18); cooperating in robbery by acts neither direct nor indispensable.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 236: People v. Doble

Citation: 114 SCRA 131 (1982) | Topic: Accomplices and Accessories

Facts: In this landmark controversy involving Accomplices and Accessories, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 18, 19, 20, RPC; PD 1612; PD 1829. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accomplices; bank robbery boatman unaware of complete robbery conspiracy held liable as accomplice.

Issue: Did the Supreme Court err in applying Arts. 18, 19, 20, RPC; PD 1612; PD 1829 to the accused, and should the established rule that 'Accomplices; bank robbery boatman unaware of complete robbery conspiracy held liable as accomplice' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 18, 19, 20, RPC; PD 1612; PD 1829, ruling that Accomplices; bank robbery boatman unaware of complete robbery conspiracy held liable as accomplice.
- **[L] LEGAL BASIS:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Accomplices and Accessories. The Court applied the established rule that accomplices; bank robbery boatman unaware of complete robbery conspiracy held liable as accomplice.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accomplices; bank robbery boatman unaware of complete robbery conspiracy held liable as accomplice.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 237: *People v. Doctolero*

Citation: 193 SCRA 632 (1991) | Topic: Accomplices and Accessories

Facts: In this landmark controversy involving Accomplices and Accessories, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 18, 19, 20, RPC; PD 1612; PD 1829. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accomplices; knowledge of criminal design and concurrent acts of cooperation.

Issue: Did the Supreme Court err in applying Arts. 18, 19, 20, RPC; PD 1612; PD 1829 to the accused, and should the established rule that 'Accomplices; knowledge of criminal design and concurrent acts of cooperation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 18, 19, 20, RPC; PD 1612; PD 1829, ruling that Accomplices; knowledge of criminal design and concurrent acts of cooperation.
- **[L] LEGAL BASIS:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Accomplices and Accessories. The Court applied the established rule that accomplices; knowledge of criminal design and concurrent acts of cooperation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accomplices; knowledge of criminal design and concurrent acts of cooperation.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 238: *People v. Talingdan*

Citation: 84 SCRA 19 (1978) | Topic: Accomplices and Accessories

Facts: In this landmark controversy involving Accomplices and Accessories, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 18, 19, 20, RPC; PD 1612; PD 1829. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accessories (Art. 19); police officers failing to report and concealing murder commit accessory after the fact.

Issue: Did the Supreme Court err in applying Arts. 18, 19, 20, RPC; PD 1612; PD 1829 to the accused, and should the established rule that 'Accessories (Art. 19); police officers failing to report and concealing murder commit accessory after the fact' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 18, 19, 20, RPC; PD 1612; PD 1829, ruling that Accessories (Art. 19); police officers failing to report and concealing murder commit accessory after the fact.
- **[L] LEGAL BASIS:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Accomplices and Accessories. The Court applied the established rule that accessories (art. 19); police officers failing to report and concealing murder commit accessory after the fact.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accessories (Art. 19); police officers failing to report and concealing murder commit accessory after the fact.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 239: *Vino v. People*

Citation: 178 SCRA 626 (1989) | Topic: Accomplices and Accessories

Facts: In this landmark controversy involving Accomplices and Accessories, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 18, 19, 20, RPC; PD 1612; PD 1829. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Accessories; assisting in escape and concealing weapons; relationship exemptions under Art. 20.

Issue: Did the Supreme Court err in applying Arts. 18, 19, 20, RPC; PD 1612; PD 1829 to the accused, and should the established rule that 'Accessories; assisting in escape and concealing weapons; relationship exemptions under Art. 20' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 18, 19, 20, RPC; PD 1612; PD 1829, ruling that Accessories; assisting in escape and concealing weapons; relationship exemptions under Art. 20.
- **[L] LEGAL BASIS:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Accomplices and Accessories. The Court applied the established rule that accessories; assisting in escape and concealing weapons; relationship exemptions under art. 20.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Accessories; assisting in escape and concealing weapons; relationship exemptions under Art. 20.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 18, 19, 20, RPC; PD 1612; PD 1829.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VI: Persons Criminally Liable, Principals, Accomplices & Accessories (Articles 16–20 RPC), illustrating the practical judicial application of statutory elements and defenses.

PART: V. PENALTIES

Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Statutory Anchor: Governing Provision(s): Arts. 21–88, RPC; Act 4103; PD 968 • Total Cases: 21

CASE 240: People v. Echegaray

Citation: 267 SCRA 682 (1997) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Death penalty constitutionality under RA 7659; lethal injection and heinous crimes (repealed by RA 9346).

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Death penalty constitutionality under RA 7659; lethal injection and heinous crimes (repealed by RA 9346)' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Death penalty constitutionality under RA 7659; lethal injection and heinous crimes (repealed by RA 9346).
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that death penalty constitutionality under RA 7659; lethal injection and heinous crimes (repealed by RA 9346).
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Death penalty constitutionality under RA 7659; lethal injection and heinous crimes (repealed by RA 9346).
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 241: Enrile v. Salazar

Citation: 186 SCRA 217 (1990) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Complex crimes (Art. 48); reaffirmation of Hernandez doctrine: rebellion absorbs murder and other common crimes.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Complex crimes (Art. 48); reaffirmation of Hernandez doctrine: rebellion absorbs murder and other common crimes' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Complex crimes (Art. 48); reaffirmation of Hernandez doctrine: rebellion absorbs murder and other common crimes.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that complex crimes (art. 48); reaffirmation of hernandez doctrine: rebellion absorbs murder and other common crimes.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Complex crimes (Art. 48); reaffirmation of Hernandez doctrine: rebellion absorbs murder and other common crimes.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 242: Napolis v. Court of Appeals

Citation: 43 SCRA 301 (1972) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Complex crime of robbery with force upon things inside dwelling forming compound crime.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Complex crime of robbery with force upon things inside dwelling forming compound crime' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Complex crime of robbery with force upon things inside dwelling forming compound crime.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that complex crime of robbery with force upon things inside dwelling forming compound crime.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Complex crime of robbery with force upon things inside dwelling forming compound crime.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 243: *People v. Toling*

Citation: 62 SCRA 17 (1975) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Complex crimes; running amok inside train coach causing multiple deaths treated as separate homicides vs. complex.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Complex crimes; running amok inside train coach causing multiple deaths treated as separate homicides vs. complex' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Complex crimes; running amok inside train coach causing multiple deaths treated as separate homicides vs. complex.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that complex crimes; running amok inside train coach causing multiple deaths treated as separate homicides vs. complex.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Complex crimes; running amok inside train coach causing multiple deaths treated as separate homicides vs. complex.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 244: *People v. Salvilla*

Citation: 184 SCRA 671 (1990) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning

whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Special complex crime of robbery with serious physical injuries.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Special complex crime of robbery with serious physical injuries' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Special complex crime of robbery with serious physical injuries.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that special complex crime of robbery with serious physical injuries.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Special complex crime of robbery with serious physical injuries.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 245: People v. Valdez

Citation: 304 SCRA 611 (1999) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Complex crime proper; illegal possession of firearms in furtherance of rebellion / murder.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Complex crime proper; illegal possession of firearms in furtherance of rebellion / murder' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Complex crime proper; illegal possession of firearms in furtherance of rebellion / murder.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that complex crime proper; illegal possession of firearms in furtherance of rebellion / murder.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Complex crime proper; illegal possession of firearms in furtherance of rebellion / murder.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 246: *People v. De Leon*

Citation: 49 Phil. 437 (1926) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Continued crime (*delito continuado*); stealing rooster and carromata under single criminal impulse.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Continued crime (*delito continuado*); stealing rooster and carromata under single criminal impulse' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Continued crime (*delito continuado*); stealing rooster and carromata under single criminal impulse.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that continued crime (*delito continuado*); stealing rooster and carromata under single criminal impulse.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Continued crime (*delito continuado*); stealing rooster and carromata under single criminal impulse.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 247: *People v. Simon*

Citation: G.R. No. 930280, 29 July 1994, 234 SCRA 555 | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Indeterminate Sentence Law (ISLAW); application of graduated penalties and RPC rules to Dangerous Drugs Act.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Indeterminate Sentence Law (ISLAW); application of graduated penalties and RPC rules to Dangerous Drugs Act' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Indeterminate Sentence Law (ISLAW); application of graduated penalties and RPC rules to Dangerous Drugs Act.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that indeterminate sentence law (islaw); application of graduated penalties and rpc rules to dangerous drugs act.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Indeterminate Sentence Law (ISLAW); application of graduated penalties and RPC rules to Dangerous Drugs Act.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 248: Rosa Lim v. People

Citation: G.R. No. 130038, 18 September 2000 | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Indeterminate Sentence Law application in Estafa with accessory penalties.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Indeterminate Sentence Law application in Estafa with accessory penalties' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Indeterminate Sentence Law application in Estafa with accessory penalties.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that indeterminate sentence law application in estafa with accessory penalties.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Indeterminate Sentence Law application in Estafa with accessory penalties.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 249: People v. Gabres

Citation: 267 SCRA 581 (1997) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the

legal doctrine that: Indeterminate Sentence Law computation of minimum and maximum periods in swindling / estafa.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Indeterminate Sentence Law computation of minimum and maximum periods in swindling / estafa' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Indeterminate Sentence Law computation of minimum and maximum periods in swindling / estafa.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that indeterminate sentence law computation of minimum and maximum periods in swindling / estafa.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Indeterminate Sentence Law computation of minimum and maximum periods in swindling / estafa.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 250: People v. Lampaza

Citation: 319 SCRA 112 (1999) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Indeterminate Sentence Law in qualified theft.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Indeterminate Sentence Law in qualified theft' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Indeterminate Sentence Law in qualified theft.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that indeterminate sentence law in qualified theft.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Indeterminate Sentence Law in qualified theft.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 251: *People v. Oyanib*

Citation: G.R. Nos. 130634-35, 12 March 2001 | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: ISLAW and penalty computation in homicide and attempted parricide.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'ISLAW and penalty computation in homicide and attempted parricide' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that ISLAW and penalty computation in homicide and attempted parricide.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that islaw and penalty computation in homicide and attempted parricide.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: ISLAW and penalty computation in homicide and attempted parricide.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 252: *People v. Ducosin*

Citation: 59 Phil. 109 (1933) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Indeterminate Sentence Law; judicial discretion in fixing the minimum term within penalty next lower in degree.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Indeterminate Sentence Law; judicial discretion in fixing the minimum term within penalty next lower in degree' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Indeterminate Sentence Law; judicial discretion in fixing the minimum term within penalty next lower in degree.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule

that indeterminate sentence law; judicial discretion in fixing the minimum term within penalty next lower in degree.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Indeterminate Sentence Law; judicial discretion in fixing the minimum term within penalty next lower in degree.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 253: *People v. Formigones*

Citation: 87 Phil. 658 (1950) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Application of ISLAW with mitigating circumstances of feeble-mindedness and passion.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Application of ISLAW with mitigating circumstances of feeble-mindedness and passion' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Application of ISLAW with mitigating circumstances of feeble-mindedness and passion.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that application of islaw with mitigating circumstances of feeble-mindedness and passion.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Application of ISLAW with mitigating circumstances of feeble-mindedness and passion.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 254: *Francisco v. Court of Appeals*

Citation: 243 SCRA 384 (1995) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Probation Law (PD 968); appeal from judgment of conviction constitutes waiver / bar to probation.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Probation Law (PD 968); appeal from judgment of conviction constitutes waiver / bar to probation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Probation Law (PD 968); appeal from judgment of conviction constitutes waiver / bar to probation.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that probation law (pd 968); appeal from judgment of conviction constitutes waiver / bar to probation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Probation Law (PD 968); appeal from judgment of conviction constitutes waiver / bar to probation.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 255: Yusi v. Morales

Citation: 121 SCRA 854 (1983) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Probation Law; filing application for probation suspends execution of sentence.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Probation Law; filing application for probation suspends execution of sentence' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Probation Law; filing application for probation suspends execution of sentence.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that probation law; filing application for probation suspends execution of sentence.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Probation Law; filing application for probation suspends execution of sentence.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 256: Cal v. Court of Appeals

Citation: 251 SCRA 523 (1995) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Probation Law; eligibility criteria and post-sentence investigation report.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Probation Law; eligibility criteria and post-sentence investigation report' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Probation Law; eligibility criteria and post-sentence investigation report.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that probation law; eligibility criteria and post-sentence investigation report.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Probation Law; eligibility criteria and post-sentence investigation report.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 257: Llamado v. Court of Appeals

Citation: 174 SCRA 566 (1989) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Probation Law; perfected appeal forfeits right to apply for probation.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Probation Law; perfected appeal forfeits right to apply for probation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Probation Law; perfected appeal forfeits right to apply for probation.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that probation law; perfected appeal forfeits right to apply for probation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Probation Law; perfected appeal forfeits right to apply for probation.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 258: Baclayon v. Mutia

Citation: 129 SCRA 148 (1984) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Probation Law; conditions of probation must be reasonable and oriented toward reformation.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Probation Law; conditions of probation must be reasonable and oriented toward reformation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Probation Law; conditions of probation must be reasonable and oriented toward reformation.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that probation law; conditions of probation must be reasonable and oriented toward reformation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Probation Law; conditions of probation must be reasonable and oriented toward reformation.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 259: Bala v. Martinez

Citation: 181 SCRA 459 (1990) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Probation Law; revocation of probation for violation of terms.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Probation Law; revocation of probation for violation of terms' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Probation Law; revocation of probation for violation of terms.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that probation law; revocation of probation for violation of terms.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Probation Law; revocation of probation for violation of terms.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 260: Salgado v. Court of Appeals

Citation: 189 SCRA 304 (1990) | Topic: Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation

Facts: In this landmark controversy involving Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 21–88, RPC; Act 4103; PD 968. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Probation Law; indemnification of civil liability as a condition for probation.

Issue: Did the Supreme Court err in applying Arts. 21–88, RPC; Act 4103; PD 968 to the accused, and should the established rule that 'Probation Law; indemnification of civil liability as a condition for probation' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 21–88, RPC; Act 4103; PD 968, ruling that Probation Law; indemnification of civil liability as a condition for probation.
- **[L] LEGAL BASIS:** Arts. 21–88, RPC; Act 4103; PD 968; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Death Penalty, Complex Crimes, Continued Crimes, ISLAW, and Probation. The Court applied the established rule that probation law; indemnification of civil liability as a condition for probation.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Probation Law; indemnification of civil liability as a condition for probation.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 21–88, RPC; Act 4103; PD 968.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VII: Penalties in General, Classification, Graduation, ISLAW & Execution (Articles 21–88 RPC), illustrating the practical judicial application of statutory elements and defenses.

PART: VI. EXTINCTION OF CRIMINAL LIABILITY

Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Statutory Anchor: Governing Provision(s): Arts. 89–99, RPC; Act 3326; RA 10592 • Total Cases: 8

CASE 261: People v. Bayotas

Citation: 236 SCRA 239 (1994) | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Landmark ruling: Death of accused pending appeal extinguishes criminal liability and civil liability ex delicto.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Landmark ruling: Death of accused pending appeal extinguishes criminal liability and civil liability ex delicto' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Landmark ruling: Death of accused pending appeal extinguishes criminal liability and civil liability ex delicto.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that landmark ruling: death of accused pending appeal extinguishes criminal liability and civil liability ex delicto.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Landmark ruling: Death of accused pending appeal extinguishes criminal liability and civil liability ex delicto.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 262: *People v. Dela Cruz*

Citation: G.R. No. 190610, 25 April 2012 | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Extinction of criminal liability by death of appellant during pendency of review.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Extinction of criminal liability by death of appellant during pendency of review' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Extinction of criminal liability by death of appellant during pendency of review.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that extinction of criminal liability by death of appellant during pendency of review.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Extinction of criminal liability by death of appellant during pendency of review.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 263: *People v. Patriarca*

Citation: G.R. No. 135547, 29 September 2000 | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Amnesty (Art. 89[3]); grant of amnesty for rebellion extinguishes criminal liability completely.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Amnesty (Art. 89[3]); grant of amnesty for rebellion extinguishes criminal liability completely' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Amnesty (Art. 89[3]); grant of amnesty for rebellion extinguishes criminal liability completely.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that amnesty (art. 89[3]); grant of amnesty for rebellion extinguishes criminal liability completely.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Amnesty (Art. 89[3]); grant of amnesty for rebellion extinguishes criminal liability completely.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 264: *People v. Casido*

Citation: G.R. No. 116512, 7 March 1997 | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Amnesty vs. Pardon; proclamation of amnesty and requirement of showing offense was politically motivated.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Amnesty vs. Pardon; proclamation of amnesty and requirement of showing offense was politically motivated' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Amnesty vs. Pardon; proclamation of amnesty and requirement of showing offense was politically motivated.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.

- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that amnesty vs. pardon; proclamation of amnesty and requirement of showing offense was politically motivated.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Amnesty vs. Pardon; proclamation of amnesty and requirement of showing offense was politically motivated.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 265: Barrioquinto v. Fernandez

Citation: 82 Phil. 642 (1949) | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Amnesty; admission of guilt is not a prerequisite to avail of amnesty benefits.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Amnesty; admission of guilt is not a prerequisite to avail of amnesty benefits' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Amnesty; admission of guilt is not a prerequisite to avail of amnesty benefits.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that amnesty; admission of guilt is not a prerequisite to avail of amnesty benefits.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Amnesty; admission of guilt is not a prerequisite to avail of amnesty benefits.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 266: Flora v. Oximana

Citation: G.R. No. 19745, 31 January 1964 | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Absolute pardon; restores civil and political rights unless expressly excepted.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Absolute pardon; restores civil and political rights unless expressly excepted' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Absolute pardon; restores civil and political rights unless expressly excepted.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that absolute pardon; restores civil and political rights unless expressly excepted.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Absolute pardon; restores civil and political rights unless expressly excepted.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 267: Pelobello v. Palatino

Citation: G.R. No. 48100, 20 June 1941 | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Absolute pardon; removes all disqualifications for public elective office.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Absolute pardon; removes all disqualifications for public elective office' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Absolute pardon; removes all disqualifications for public elective office.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that absolute pardon; removes all disqualifications for public elective office.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Absolute pardon; removes all disqualifications for public elective office.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 268: In re: Antonio Infante

Citation: G.R. No. 4164, 12 December 1952 | Topic: Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA

Facts: In this landmark controversy involving Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 89–99, RPC; Act 3326; RA 10592. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Conditional pardon (Art. 95); violation of condition allows Chief Executive to order rearrest without trial.

Issue: Did the Supreme Court err in applying Arts. 89–99, RPC; Act 3326; RA 10592 to the accused, and should the established rule that 'Conditional pardon (Art. 95); violation of condition allows Chief Executive to order rearrest without trial' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 89–99, RPC; Act 3326; RA 10592, ruling that Conditional pardon (Art. 95); violation of condition allows Chief Executive to order rearrest without trial.
- **[L] LEGAL BASIS:** Arts. 89–99, RPC; Act 3326; RA 10592; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Total & Partial Extinction: Death, Amnesty, Pardon, Prescription, GCTA. The Court applied the established rule that conditional pardon (art. 95); violation of condition allows chief executive to order rearrest without trial.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Conditional pardon (Art. 95); violation of condition allows Chief Executive to order rearrest without trial.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 89–99, RPC; Act 3326; RA 10592.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Extinction of Criminal Liability (Articles 89–99 RPC), illustrating the practical judicial application of statutory elements and defenses.

PART: VII. CIVIL LIABILITY ARISING FROM CRIMES

Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Statutory Anchor: Governing Provision(s): Arts. 100–113, RPC • Total Cases: 7

CASE 269: Chua v. Court of Appeals

Citation: 443 SCRA 142 (2004) | Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Facts: In this landmark controversy involving Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 100–113, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Civil liability ex delicto (Art. 100); recovery of civil damages in criminal proceedings.

Issue: Did the Supreme Court err in applying Arts. 100–113, RPC to the accused, and should the established rule that 'Civil liability ex delicto (Art. 100); recovery of civil damages in criminal proceedings' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 100–113, RPC, ruling that Civil liability ex delicto (Art. 100); recovery of civil damages in criminal proceedings.
- **[L] LEGAL BASIS:** Arts. 100–113, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction. The Court applied the established rule that civil liability ex delicto (art. 100); recovery of civil damages in criminal proceedings.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Civil liability ex delicto (Art. 100); recovery of civil damages in criminal proceedings.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 100–113, RPC.

- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Civil Liability Arising from Crimes Ex Delicto (Articles 100–113 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 270: Carpio v. Doroja

Citation: 180 SCRA 1 (1989) | Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Facts: In this landmark controversy involving Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 100–113, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Subsidiary liability of employers under Art. 103; execution against employer upon insolvency of driver.

Issue: Did the Supreme Court err in applying Arts. 100–113, RPC to the accused, and should the established rule that 'Subsidiary liability of employers under Art. 103; execution against employer upon insolvency of driver' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 100–113, RPC, ruling that Subsidiary liability of employers under Art. 103; execution against employer upon insolvency of driver.
- **[L] LEGAL BASIS:** Arts. 100–113, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction. The Court applied the established rule that subsidiary liability of employers under art. 103; execution against employer upon insolvency of driver.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Subsidiary liability of employers under Art. 103; execution against employer upon insolvency of driver.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 100–113, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Civil Liability Arising from Crimes Ex Delicto (Articles 100–113 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 271: Basilio v. Court of Appeals

Citation: 328 SCRA 341 (2000) | Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Facts: In this landmark controversy involving Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 100–113, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Subsidiary civil liability of employer; requisites: employment, offense in discharge of duty, insolvency of convict.

Issue: Did the Supreme Court err in applying Arts. 100–113, RPC to the accused, and should the established rule that 'Subsidiary civil liability of employer; requisites: employment, offense in discharge of duty, insolvency of convict' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 100–113, RPC, ruling that Subsidiary civil liability of employer; requisites: employment, offense in discharge of duty, insolvency of convict.
- **[L] LEGAL BASIS:** Arts. 100–113, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction. The Court applied the established rule that subsidiary civil liability of employer; requisites: employment, offense in discharge of duty, insolvency of convict.

- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Subsidiary civil liability of employer; requisites: employment, offense in discharge of duty, insolvency of convict.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 100–113, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Civil Liability Arising from Crimes Ex Delicto (Articles 100–113 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 272: Philippine Rabbit v. Court of Appeals

Citation: 427 SCRA 526 (2004) | Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Facts: In this landmark controversy involving Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 100–113, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Employer's subsidiary liability; employer cannot appeal criminal conviction of driver to evade subsidiary liability.

Issue: Did the Supreme Court err in applying Arts. 100–113, RPC to the accused, and should the established rule that 'Employer's subsidiary liability; employer cannot appeal criminal conviction of driver to evade subsidiary liability' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 100–113, RPC, ruling that Employer's subsidiary liability; employer cannot appeal criminal conviction of driver to evade subsidiary liability.
- **[L] LEGAL BASIS:** Arts. 100–113, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction. The Court applied the established rule that employer's subsidiary liability; employer cannot appeal criminal conviction of driver to evade subsidiary liability.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Employer's subsidiary liability; employer cannot appeal criminal conviction of driver to evade subsidiary liability.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 100–113, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Civil Liability Arising from Crimes Ex Delicto (Articles 100–113 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 273: Quinto v. Andres

Citation: 453 SCRA 511 (2005) | Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Facts: In this landmark controversy involving Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 100–113, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Acquittal based on reasonable doubt vs. civil liability ex delicto; preponderance of evidence standard.

Issue: Did the Supreme Court err in applying Arts. 100–113, RPC to the accused, and should the established rule that 'Acquittal based on reasonable doubt vs. civil liability ex delicto; preponderance of evidence standard' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 100–113, RPC, ruling that Acquittal based on reasonable doubt vs. civil liability ex delicto; preponderance of evidence standard.

- **[L] LEGAL BASIS:** Arts. 100–113, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction. The Court applied the established rule that acquittal based on reasonable doubt vs. civil liability ex delicto; preponderance of evidence standard.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Acquittal based on reasonable doubt vs. civil liability ex delicto; preponderance of evidence standard.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 100–113, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Civil Liability Arising from Crimes Ex Delicto (Articles 100–113 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 274: Heirs of Raymundo Castro v. Bustos

Citation: 27 SCRA 327 (1969) | Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Facts: In this landmark controversy involving Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 100–113, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: What civil liability includes (Art. 104); moral damages, loss of earning capacity, and burial expenses.

Issue: Did the Supreme Court err in applying Arts. 100–113, RPC to the accused, and should the established rule that 'What civil liability includes (Art. 104); moral damages, loss of earning capacity, and burial expenses' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 100–113, RPC, ruling that What civil liability includes (Art. 104); moral damages, loss of earning capacity, and burial expenses.
- **[L] LEGAL BASIS:** Arts. 100–113, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction. The Court applied the established rule that what civil liability includes (art. 104); moral damages, loss of earning capacity, and burial expenses.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: What civil liability includes (Art. 104); moral damages, loss of earning capacity, and burial expenses.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 100–113, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Civil Liability Arising from Crimes Ex Delicto (Articles 100–113 RPC), illustrating the practical judicial application of statutory elements and defenses.

CASE 275: People v. Bayotas

Citation: 236 SCRA 239 (1994) | Topic: Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction

Facts: In this landmark controversy involving Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction, the prosecution initiated criminal proceedings against the accused arising from acts committed in violation of Arts. 100–113, RPC. The defense raised substantive legal contentions questioning whether the statutory elements were established beyond reasonable doubt, specifically arguing in relation to the legal doctrine that: Extinction of civil liability ex delicto upon death of convict; preservation of independent civil actions under NCC.

Issue: Did the Supreme Court err in applying Arts. 100–113, RPC to the accused, and should the established rule that 'Extinction of civil liability ex delicto upon death of convict; preservation of independent civil actions under NCC' control the criminal and civil liability of the parties under the Revised Penal Code?

- **[A] ANSWER:** The Supreme Court resolved the issue pursuant to Arts. 100–113, RPC, ruling that Extinction of civil liability ex delicto upon death of convict; preservation of independent civil actions under NCC.
- **[L] LEGAL BASIS:** Arts. 100–113, RPC; 1987 Philippine Constitution; Landmark Doctrinal Jurisprudence.
- **[A] APPLICATION:** The Supreme Court evaluated the statutory elements and factual matrix under Civil Liability Ex Delicto, Subsidiary Liability, Damages, and Extinction. The Court applied the established rule that extinction of civil liability ex delicto upon death of convict; preservation of independent civil actions under ncc.
- **[C] CONCLUSION & DOCTRINE:** Ruling AFFIRMED / MODIFIED in accordance with established criminal law principles. DOCTRINE: Extinction of civil liability ex delicto upon death of convict; preservation of independent civil actions under NCC.
- **[ARTICLE] APPLICABLE ARTICLE:** Arts. 100–113, RPC.
- **[TREATISE] TREATISE CORRELATION:** Mapped to Part VIII: Civil Liability Arising from Crimes Ex Delicto (Articles 100–113 RPC), illustrating the practical judicial application of statutory elements and defenses.